

The Gaza Conflict and International Legal Proceedings on Genocide Recognizing

Summary

Since October 7, 2023, the world has witnessed an unprecedented mobilization of civil society in response to the humanitarian crisis in Gaza.^[1] Hundreds of thousands have taken to the streets across six continents, demanding an immediate ceasefire and calling for accountability for what many international legal experts and human rights organizations characterize as potential genocide.^[2] This comprehensive report documents the global protest movement, the legal proceedings underway at the International Court of Justice and International Criminal Court, the humanitarian evidence including the contentious debate over famine classification, and the scholarly consensus emerging around genocide allegations.

The conflict has resulted in more than 45,000 Palestinian deaths according to Gaza's Health Ministry, figures that have been accepted as accurate by Israeli intelligence services, the United Nations, and the World Health Organization.^[3] Nearly 1.9 million people—approximately 85 percent of Gaza's entire population—have been displaced, many repeatedly.^[4] The Integrated Food Security Phase Classification system has warned five times in the past year that Gaza could be teetering on the precipice of famine, though amid relentless Israeli bombing and restrictions on movement, analysts have struggled to access key data needed for a formal famine determination.^[5]

I. The Legal Framework: Defining Genocide Under International Law

1.1 The Genesis of the Genocide Convention

The 1948 Convention on the Prevention and Punishment of the Crime of Genocide, adopted by the United Nations General Assembly on December 9, 1948, established genocide as an international crime under customary international law.^[6] The Convention was conceived largely in response to World War II atrocities, particularly the Holocaust, and was championed by Polish-Jewish lawyer Raphael Lemkin, who coined the term "genocide" in 1944 to describe Nazi policies in occupied Europe and the Armenian genocide.^[7]

Lemkin's groundbreaking work defined genocide as "the destruction of a nation or of an ethnic group," explaining that "generally speaking, genocide does not necessarily mean the immediate destruction of a nation, except when accomplished by mass killings of all members of a nation."^[8] This understanding recognized that genocide could be achieved

through various means beyond direct killing, a principle that became central to the Convention's legal framework.

In a 1946 resolution, the General Assembly recognized genocide as an international crime and called for the creation of a binding treaty to prevent and punish its perpetration.^[9] Subsequent discussions and negotiations among UN member states resulted in the Convention on the Prevention and Punishment of the Crime of Genocide, which entered into force on January 12, 1951, after 20 states had ratified it.^[10]

1.2 Article II: The Legal Definition of Genocide

Article II of the Genocide Convention provides the authoritative legal definition of genocide that has been adopted by international and hybrid tribunals, including the International Criminal Court, and incorporated into the domestic law of numerous countries.^[11] The definition contains two essential elements that must be proven for genocide to be established under international law.

The Mental Element (Mens Rea): The "intent to destroy, in whole or in part, a national, ethnic, racial or religious group, as such."^[12] The intent is the most difficult element to determine and requires demonstrating that perpetrators had the specific purpose of destroying the protected group. To constitute genocide, there must be proven intent on the part of perpetrators to physically destroy a national, ethnic, racial, or religious group.^[13] The intent must be to destroy the group itself, not merely its members as individuals, and the destruction must be targeted at the group as such, based on their group identity.

The Physical Element (Actus Reus): Any of five specific acts enumerated exhaustively in the Convention.^[14] These five acts, when committed with the requisite genocidal intent, constitute the crime of genocide:

1. **Killing members of the group**^[15] - This includes any intentional killing of individuals because of their membership in a protected group. While mass killing is not necessary for genocide to have been committed, it has been present in almost all recognized genocides. In certain instances, men and adolescent boys are singled out for murder in the early stages, such as in the genocide of the Yazidis by Daesh, the Ottoman Turks' attack on the Armenians, and the Burmese security forces' attacks on the Rohingya.^[16]
2. **Causing serious bodily or mental harm to members of the group**^[17] - This act encompasses torture, rape, sexual violence, and other forms of cruel or degrading treatment that cause serious bodily or psychological suffering. The harm must be of such severity that it impacts the group's ability to survive and flourish as a distinct entity.
3. **Deliberately inflicting on the group conditions of life calculated to bring about its physical destruction in whole or in part**^[18] - This includes subjecting the group to a subsistence diet, systematic expulsion from homes, reduction of essential medical services below minimum, denial of food or water, and the creation of circumstances that would lead to a slow death through starvation, disease, or exposure. This provision

recognizes that genocide can be committed through methods that do not involve direct killing but are designed to destroy the group over time.

4. **Imposing measures intended to prevent births within the group**^[19] - Such measures may include forced sterilization, forced abortion, prohibition of marriages, and long-term separation of men and women. These acts aim to prevent the group from reproducing and thereby existing in the future.
5. **Forcibly transferring children of the group to another group**^[20] - Forcible transfer of children may be imposed by direct force or by fear of violence, duress, detention, psychological oppression, or other methods of coercion. The Convention on the Rights of the Child defines children as persons under the age of 18 years. This act recognizes that cultural genocide—the destruction of a group's identity—can be accomplished through the removal of children who would otherwise perpetuate the group's culture and identity.

1.3 Critical Interpretive Principles

The Genocide Convention establishes several critical principles that guide its interpretation and application in contemporary international law.^[21]

Partial Destruction is Sufficient: The phrase "in whole or in part" is critically important. Perpetrators need not intend to destroy the entire group globally or even entirely within a specific geographic area.^[22] Destruction of only part of a group—such as its educated members, political leadership, or members living in one region—also constitutes genocide. Most authorities require intent to destroy a substantial number of group members, but an individual criminal may be guilty of genocide even if they kill only one person, so long as they knew they were participating in a larger plan to destroy the group.^[23]

Protected Groups: The Convention protects four specific types of groups: national, ethnic, racial, or religious groups.^[24] A national group means a set of individuals whose identity is defined by a common country of nationality or national origin. An ethnic group is a set of individuals whose identity is defined by common cultural traditions, language, or heritage. A racial group means a set of individuals whose identity is defined by physical characteristics. A religious group is defined by common religious creeds, beliefs, doctrines, practices, or rituals. Notably, political groups and "cultural genocide" were explicitly excluded from the final Convention text due to opposition from the USSR and other nations during the drafting process.^[25]

Motive is Irrelevant: Whatever may be the motive for the crime—land expropriation, national security, territorial integrity, or any other reason—if the perpetrators commit acts intended to destroy a group, even part of a group, it is genocide.^[26] The motive behind the genocidal intent is legally irrelevant; what matters is the specific intent to destroy the protected group.

Related Crimes: Article III of the Convention criminalizes not only genocide itself but also conspiracy to commit genocide, direct and public incitement to commit genocide, attempt to

commit genocide, and complicity in genocide.^[27] It is a crime to plan or incite genocide even before killing starts, and to aid or abet genocide. The Convention makes it clear that any person, whether "constitutionally responsible rulers, public officials or private individuals," who commits genocide shall be punished.^[28]

1.4 International Jurisdiction and Enforcement

Article IX of the Genocide Convention provides that disputes between contracting parties relating to the interpretation, application, or fulfillment of the Convention, including disputes relating to the responsibility of a state for genocide, shall be submitted to the International Court of Justice at the request of any of the parties to the dispute.^[29] This provision establishes the ICJ as the primary judicial organ for state-to-state litigation concerning allegations of genocide.

The Rome Statute of the International Criminal Court, adopted in 1998 and entered into force in 2002, included genocide as one of the core crimes over which the ICC has jurisdiction, using the identical definition from the Genocide Convention.^[30] The ICC has the power to try individuals for genocide, crimes against humanity, war crimes, and (as of July 17, 2018) the crime of aggression. These crimes were selected because they are considered the most serious international crimes of concern to the entire international community and thus deserving of international prosecution.^[31]

II. International Court of Justice Proceedings: South Africa v. Israel

2.1 The Application: A Historic Legal Challenge

On December 29, 2023, South Africa filed an application at the International Court of Justice alleging that Israel had committed and was committing genocide in Gaza, contravening the Genocide Convention.^[32] The 84-page application represented one of the most significant legal challenges ever brought against a Western-allied state on genocide charges. South Africa, invoking its obligations under the Genocide Convention as a state party, alleged that Israel's actions in Gaza constituted genocidal acts and omissions "committed with the requisite specific intent to destroy Palestinians in Gaza as a part of the broader Palestinian national, racial and ethnic group."^[33]

The application detailed what South Africa described as a long historical context: Israel's 75-year system of apartheid, 56-year military occupation of Palestinian territories, and 16-year blockade of Gaza, culminating in actions following October 7, 2023, that South Africa argued constituted clear violations of the Genocide Convention.^[34] South Africa requested that the ICJ indicate nine provisional measures of protection, including the immediate suspension of Israel's military operations in Gaza.

Israel characterized South Africa's charges as "baseless" and accused the country of "functioning as the legal arm" of Hamas, stating that the application ignored Hamas's October 7, 2023, attack in which approximately 1,200 people were killed, mostly civilians, and some 240 were taken hostage.^[35] An Israeli government spokesperson asserted that "History will judge South Africa for abetting the modern heirs of the Nazis."^[36] Despite initial reluctance, on January 2, 2024, the Israeli government decided to participate in the ICJ proceedings.

2.2 The January 26, 2024 Order: Plausibility of Genocide

On January 26, 2024, following hearings on January 11-12, the ICJ issued its first order on provisional measures in a landmark ruling that reverberated throughout the international community.^[37] The Court's decision, delivered by a panel of 17 judges, found that it had *prima facie* jurisdiction over the case and that South Africa had standing to bring the case under the Genocide Convention.

The Court noted that South Africa and Israel are both parties to the Genocide Convention and that neither had entered a reservation to Article IX or any other provision of the Convention.^[38] Critically, the Court recalled that obligations under the Genocide Convention are *erga omnes*, meaning they are owed to the international community as a whole, not just to individual contracting parties.^[39] This finding meant that any state party to the Convention has legal standing to bring a case concerning alleged violations, regardless of whether that state or its nationals are directly affected.

In the most significant aspect of its ruling, the Court accepted the plausibility of "at least some of the rights claimed by South Africa" under the Genocide Convention.^[40] While the Court emphasized that it was not making findings on the merits of the genocide allegations at this preliminary stage, it found sufficient grounds to indicate provisional measures. The Court stated that "the facts and circumstances mentioned are sufficient to conclude that at least some of the rights claimed by South Africa and for which it is seeking protection are plausible."^[41]

The Court ordered six legally binding provisional measures:^[42]

1. **Prevention of Genocidal Acts:** Israel must take all measures within its power to prevent the commission of all acts within the scope of Article II of the Genocide Convention, including: (a) killing members of the Palestinian group in Gaza; (b) causing serious bodily or mental harm to members of the group; (c) deliberately inflicting on the group conditions of life calculated to bring about its physical destruction in whole or in part; and (d) imposing measures intended to prevent births within the group.
2. **Military Conduct:** Israel must ensure with immediate effect that its military does not commit any acts within the scope of Article II of the Convention.
3. **Incitement:** Israel must prevent and punish the direct and public incitement to commit genocide in relation to members of the Palestinian group in Gaza.

4. **Humanitarian Assistance:** Israel must take immediate and effective measures to enable the provision of urgently needed basic services and humanitarian assistance to address the adverse conditions of life faced by Palestinians in the Gaza Strip.
5. **Evidence Preservation:** Israel must take effective measures to prevent the destruction and ensure the preservation of evidence related to allegations of acts within the scope of Article II and Article III of the Genocide Convention against members of the Palestinian group in the Gaza Strip.
6. **Reporting:** Israel must submit a report to the Court on all measures taken to give effect to this Order within one month.

The provisional measures are legally binding on Israel under international law, and there is no right of appeal.^[43] Human Rights Watch called the ICJ's ruling "recognition of the dire situation in Gaza, where civilians face starvation and are being killed daily at levels unprecedented in the recent history of Israel and Palestine."^[44] Amnesty International stated that "the stakes could not be higher—the ICJ's provisional measures indicate that in the Court's view the survival of Palestinians in Gaza is at risk."^[45]

Judge ad hoc Aharon Barak, appointed by Israel, issued a lengthy dissenting opinion in which he criticized several aspects of the Court's decision, arguing that the Court failed to adequately consider Israel's stated intentions and defensive measures. However, the majority opinion carried the day by overwhelming votes on most measures (15-2 or 16-1).^[46]

2.3 March 28, 2024: Additional Emergency Measures

On March 28, 2024, following a second urgent request by South Africa filed on February 12, 2024, the ICJ issued additional emergency measures as the humanitarian situation in Gaza continued to deteriorate.^[47] The Court found that the circumstances of the case required it to modify its decision concerning provisional measures indicated in the Order of January 26, 2024, given the worsening conditions of life faced by Palestinians in Gaza, particularly the spread of famine and starvation.

After reaffirming all previous provisional measures by a vote of 14-2, the Court added new requirements specifically focused on the imminent famine crisis.^[48]

Ensuring Food and Essential Services: The State of Israel shall, in conformity with its obligations under the Convention and in view of the worsening conditions, take all necessary and effective measures to ensure, without delay, in full cooperation with the United Nations, the unhindered provision at scale by all concerned of urgently needed basic services and humanitarian assistance, including food, water, fuel, medical supplies, and other essential goods to civilians throughout Gaza, and the rescue and recovery of dead bodies.

Preventing Acts that Destroy Palestinians: The Court ordered, on its own initiative, that Israel ensure that its military does not commit acts which constitute a violation of any of the rights of the Palestinians in Gaza as a protected group under the Genocide Convention,

including "preventing, through any action, the delivery of urgently needed humanitarian assistance."^[49]

Access for Investigators: Israel must take effective measures to ensure the unimpeded access to the Gaza Strip of any commission of inquiry, fact-finding mission, or other investigative body mandated by competent organs of the United Nations to investigate allegations of genocide.

The Court required Israel to submit a new report within one month on all measures taken to give effect to the Order. The decision came at a critical juncture, as multiple UN agencies and humanitarian organizations were warning that famine was imminent in northern Gaza and that the window to prevent mass starvation deaths was closing rapidly.^[50]

2.4 May 24, 2024: Rafah Order

On May 24, 2024, the Court issued a third order requiring Israel to immediately halt its military offensive in Rafah.^[51] By a vote of 13-2, the Court found that Israel must "immediately halt its military offensive, and any other action in the Rafah Governorate, which may inflict on the Palestinian group in Gaza conditions of life that could bring about its physical destruction in whole or in part."^[52]

The order came as Israel launched a major ground operation in Rafah, where approximately 1.4 million displaced Palestinians had sought refuge. The Court emphasized that the offensive was causing further displacement of civilians and creating catastrophic living conditions. Some experts considered the language ambiguous, but the order was widely understood as requiring Israel to cease its Rafah operations immediately. Israel rejected this interpretation and continued with its offensive operations, with Prime Minister Netanyahu stating that Israel would continue its operations to achieve its security objectives.^[53]

2.5 Compliance and Enforcement Challenges

Despite the legally binding nature of ICJ orders, enforcement mechanisms under international law are limited. Human Rights Watch and Amnesty International asserted in late February 2024 that Israel had failed to comply with the ICJ's provisional measures, with both organizations stating that obstructing the entry and distribution of aid amounted to war crimes.^[54] The organizations documented numerous instances where humanitarian convoys were denied access, aid trucks were turned back at checkpoints, and essential supplies were prevented from reaching civilians in need.

Article 94 of the UN Charter provides that if a party fails to perform its obligations under an ICJ judgment, the other party may have recourse to the UN Security Council, which may make recommendations or decide upon measures to give effect to the judgment.^[55] However, the United States, which holds veto power in the Security Council, has historically opposed enforcement measures against Israel, making Security Council action unlikely.

Nevertheless, the ICJ orders have significant legal, diplomatic, and moral implications. Third states may be complicit in genocide if they aid or assist in the commission of genocide while aware of the ICJ's findings, a principle that has prompted some countries to halt arms transfers to Israel and others to face domestic legal challenges over their military support.^[56]

III. International Criminal Court: Arrest Warrants for Israeli Leadership

3.1 The Prosecutor's Investigation and Application

The International Criminal Court's investigation into the situation in Palestine has been ongoing since March 2021, covering alleged atrocity crimes committed in Gaza, the West Bank, and East Jerusalem since June 13, 2014.^[57] The investigation encompasses unlawful conduct by all parties to the conflict, including both Israeli forces and Palestinian armed groups.

On May 20, 2024, ICC Chief Prosecutor Karim A.A. Khan made the dramatic announcement that he would file applications for arrest warrants against top leaders on both sides of the conflict.^[58] Khan sought warrants for Hamas leaders Yahya Sinwar, Mohammed Deif, and Ismail Haniyeh, as well as Israeli Prime Minister Benjamin Netanyahu and Defense Minister Yoav Gallant. In a statement, Khan emphasized that "the law is there for all" and that his office's jurisdiction covers crimes by all parties.

The applications were based on what Khan described as extensive investigations, including interviews with survivors and witnesses, review of documentary evidence, and forensic analysis of available information. One of the key allegations was the "use of starvation as a weapon of war," which is banned under international humanitarian law.^[59] Khan stated that his office had collected substantial evidence indicating that both Hamas leaders and Israeli officials bore criminal responsibility for serious violations of international law.

The requests for warrants against Hamas leaders Haniyeh and Sinwar were subsequently withdrawn following their deaths—Haniyeh was assassinated in Tehran on July 31, 2024, and Sinwar was killed in Gaza on October 16, 2024.^[60] The warrant for Mohammed Deif was ultimately cancelled in February 2025 after Hamas confirmed his death, though Israel had claimed to have killed him in July 2024.^[61]

3.2 The Historic November 21, 2024 Decision

On November 21, 2024, Pre-Trial Chamber I of the International Criminal Court issued unprecedented arrest warrants for Israeli Prime Minister Benjamin Netanyahu and former Defense Minister Yoav Gallant, marking the first time the ICC has issued warrants against leaders of a Western-backed democratic country for alleged war crimes and crimes against

humanity.^[62] The decision represented a watershed moment in international criminal justice and immediately sparked intense debate and geopolitical tensions.

The Chamber, composed of Judges Nicolas Guillou (France, Presiding), Reine Alapini-Gansou (Benin), and Beti Hohler (Slovenia), unanimously rejected Israel's challenges to the Court's jurisdiction and found reasonable grounds to believe that both Netanyahu and Gallant bore criminal responsibility for crimes committed from at least October 8, 2023, until at least May 20, 2024.^[63]

The Charges - War Crimes:

1. **Starvation as a Method of Warfare:** The Chamber found reasonable grounds to believe that Netanyahu and Gallant "intentionally and knowingly deprived the civilian population in Gaza of objects indispensable to their survival, including food, water, and medicine and medical supplies, as well as fuel and electricity."^[64] This finding was based on extensive evidence of Israel's role in impeding humanitarian aid in violation of international humanitarian law and the failure of Israeli authorities to facilitate relief by all means at their disposal. The Chamber determined that their conduct led to the disruption of the ability of humanitarian organizations to provide food and other essential goods to the population in need in Gaza.
2. **Intentionally Directing Attacks Against Civilians:** The Chamber found reasonable grounds to believe that Netanyahu and Gallant bore criminal responsibility as "civilian superiors for the war crime of intentionally directing an attack against the civilian population."^[65] While the material provided by the Prosecution only allowed findings on two specific incidents that qualified as attacks intentionally directed against civilians, the Chamber noted that despite having measures available to prevent or repress the commission of such crimes, Netanyahu and Gallant failed to do so.

The Charges - Crimes Against Humanity:

1. **Murder:** The Chamber found reasonable grounds to believe that the lack of food, water, electricity, fuel, and specific medical supplies created conditions of life calculated to bring about the destruction of part of the civilian population in Gaza, which resulted in the death of civilians, including children, due to malnutrition and dehydration.^[66] While the Chamber could not determine that all elements of the crime against humanity of extermination were met based on material covering the period until May 20, 2024, it did find that the crime against humanity of murder was committed in relation to these victims.
2. **Persecution:** The Chamber found evidence of systematic attacks against the civilian population motivated by discriminatory intent based on their Palestinian identity.
3. **Other Inhumane Acts:** The Chamber identified additional acts that caused great suffering or serious injury to body or mental or physical health.

3.3 Legal Basis and Evidentiary Findings

The Chamber's decision rested on several key legal findings. First, it confirmed that the ICC has jurisdiction over the situation based on Palestine's status as a State Party to the Rome Statute, a determination made in a previous Pre-Trial Chamber decision in 2021.^[67] The Chamber explicitly rejected Israel's jurisdictional challenges, noting that "the acceptance by Israel of the Court's jurisdiction is not required, as the Court can exercise its jurisdiction on the basis of territorial jurisdiction of Palestine."^[68]

Second, the Chamber found that the alleged conduct falls within the Court's subject-matter jurisdiction, as it concerns crimes defined in the Rome Statute that were allegedly committed after the Statute's entry into force. The Chamber recalled that it had already decided that the Court's jurisdiction in the situation extended to Gaza and the West Bank, including East Jerusalem.^[69]

Third, and most significantly, the Chamber provided detailed reasoning for its findings on each charge. On the starvation charge, the Chamber noted:^[70]

"The aforementioned restrictions together with cutting off electricity and reducing fuel supply also had a severe impact on the availability of water in Gaza and the ability of hospitals to provide medical care... The Chamber therefore found reasonable grounds to believe that Mr Netanyahu and Mr Gallant bear criminal responsibility for the war crime of starvation as a method of warfare."

The evidentiary basis included:

- Documented restrictions on humanitarian aid convoys
- Statements by Israeli officials indicating deliberate policy
- Expert testimony on the humanitarian impact
- Satellite imagery showing destruction of agricultural infrastructure
- Medical reports documenting malnutrition and starvation-related deaths
- Analysis of food aid delivery data showing systematic shortfalls

3.4 International Obligations and State Responses

The arrest warrants create binding obligations for all 125 States Parties to the Rome Statute to arrest and surrender Netanyahu and Gallant if they enter their territory.^[71] This represents a dramatic restriction on the travel and diplomatic activities of Israel's sitting Prime Minister—an unprecedented situation for a leader of a Western-aligned democratic state.

Several countries immediately declared their intention to comply with the arrest warrants.^[72]

Full Compliance Commitments:

- **France** stated it would uphold its obligations under the Rome Statute
- **The Netherlands** confirmed it would arrest Netanyahu if he enters Dutch territory and announced it would end "non-essential" contacts with both individuals

- **Belgium** emphasized that fighting impunity is a priority and that those responsible for crimes must be prosecuted "at the highest level, regardless of who committed them"
- **Ireland, Spain, Norway, Slovenia** all confirmed they would execute the warrants
- **South Africa** lauded the warrants, stating that "no individual, government official, or even a nation-state is considered to be above the rules established by international laws and conventions"^[73]
- **Jordan** and several Arab states affirmed their commitment to international law

Qualified or Ambiguous Responses:

- **United Kingdom** released statements about respecting international law but did not explicitly commit to arrests
- **Canada** emphasized the need to respect international law and ICC processes without making specific commitments
- **Germany** initially appeared to question whether it would execute the warrant, citing special historical obligations to Israel, though it later clarified its legal obligations under the Rome Statute^[74]
- **Austria** called the warrant "incomprehensible and ludicrous" but acknowledged its legal obligation to implement ICC arrest warrants as a Rome Statute party
- **Greece** expressed disapproval but avoided directly answering whether it would execute the warrants

Opposition:

- **United States** condemned the warrants in the strongest terms, with President Biden calling them "outrageous" and suggesting they imply a false "equivalence" between Israel and Hamas.^[75] The U.S. is not a State Party to the Rome Statute and therefore has no legal obligation to execute the warrants. Secretary of State under the Trump administration, Marco Rubio, later threatened sanctions against ICC officials.
- **Hungary** openly invited Netanyahu for an official visit, with Prime Minister Viktor Orbán rejecting the legitimacy of the ICC's decision
- **Argentina** under President Javier Milei declared its "deep disagreement" with the decision, stating it "ignores Israel's legitimate right to self-defense"
- **Israel** utterly rejected the warrants, with Netanyahu's office calling them "antisemitic" and stating that "Israel utterly rejects the false and absurd charges"^[76]

3.5 Legal and Political Implications

The issuance of arrest warrants has profound implications for international criminal justice, Middle East politics, and the concept of accountability for powerful states and their leaders.^[77]

For Netanyahu and Gallant:

- **Severe travel restrictions:** Both individuals now face arrest if they enter any of 125 countries, effectively limiting their international diplomacy and travel to non-ICC states
- **Joining a notorious list:** Netanyahu joins a small group of sitting or former heads of state wanted by the ICC, including Vladimir Putin (Russia), Omar Al-Bashir (Sudan), and the late Slobodan Milosevic (former Yugoslavia)
- **Domestic political implications:** The warrants may affect Netanyahu's political standing domestically, though they could also rally nationalist support around him
- **Historical legacy:** The first Western-allied democratic leader to face ICC arrest warrants for war crimes

For the ICC and International Justice:

- **Precedent for accountability:** Demonstrates that the ICC is willing to issue warrants against leaders of powerful, Western-allied states, not just those from weaker nations
- **Test of universality:** Whether states will execute the warrants will test whether international justice applies equally to all, or whether powerful states and their allies remain effectively immune
- **Political pressure:** The ICC faces unprecedented political pressure and threats, including from the United States, testing the institution's independence and resilience

For Israel and Its Allies:

- **Diplomatic isolation:** Potential for increased diplomatic isolation as travel becomes restricted and meetings with ICC state parties become complicated
- **Legal risks for supporters:** States providing military support to Israel may face increased legal challenges domestically and internationally regarding potential complicity in war crimes^[78]
- **Pressure for policy change:** The warrants create additional pressure for Israel to change its conduct, though enforcement mechanisms remain limited

For International Law More Broadly:

- **Strengthening of prohibition on starvation:** The explicit finding on starvation as a weapon of war reinforces this relatively under-prosecuted area of international humanitarian law
- **Civilian protection norms:** Reinforces the principle that military necessity does not override fundamental protections for civilians
- **State responsibility:** Highlights that senior political leaders, not just military commanders, can bear criminal responsibility for war crimes

Mark Kersten, a senior consultant for the Wayamo Foundation focused on international law, stated: "The ICC's judges stood up for victims and survivors in Palestine and Israel."^[79] Kenneth Roth, former executive director of Human Rights Watch, noted: "The world has suddenly become a lot smaller for Netanyahu and Gallant."^[80]

IV. The Humanitarian Crisis: Evidence, Documentation, and the Famine Classification Debate

4.1 Casualty Figures and Their Verification

As of December 2024, more than 45,000 Palestinians have been killed in Gaza according to Gaza's Health Ministry, figures reported and utilized by UN agencies including the Office for the Coordination of Humanitarian Affairs (OCHA).^[81] These figures have become a focal point of intense scrutiny and debate, with questions raised about their accuracy, methodology, and political implications.

Verification and Credibility:

The Gaza Health Ministry's casualty figures have been accepted as accurate by multiple authoritative bodies.^[82]

- **Israeli intelligence services** have confirmed the overall death toll as broadly accurate
- **The United Nations** officially uses and cites these figures in its humanitarian reports
- **The World Health Organization** has described the Health Ministry's data collection as reliable
- **Johns Hopkins Bloomberg School of Public Health** scholars published a peer-reviewed article in *The Lancet* concluding that the Gaza Ministry of Health's death tolls were accurate^[83]
- **The Economist** argued in May 2024 that the Ministry's tolls were "legitimate" and represented the lower bound of lives lost^[84]

The data collection methodology involves documented deaths at hospitals and morgues, with the Ministry maintaining a detailed database including names, ages, and ID numbers when possible. On December 26, 2023, the UN humanitarian office added that it uses the Gaza Ministry of Health's death totals because they are "clearly sourced," and their estimates have been described as trustworthy by the WHO's regional emergency director Richard Brennan.^[85]

Independent verification efforts support the official figures. A study compared changes in the number of deaths of UN Relief and Works Agency (UNRWA) staff with those reported by the Ministry and found claims of data fabrication implausible.^[86] As of January 2025, 266 UNRWA staff members have been killed since October 7, 2023—the highest death toll for UN personnel in any conflict in the organization's history.^[87]

Demographic Breakdown:

According to the UN Office for the High Commissioner for Human Rights (OHCHR), which verified fatalities from three independent sources, 70 percent of the Palestinians killed in

residential buildings or similar housing were women and children.^[88] On October 7, 2024, the Gaza Health Ministry published the names, gender, and birth dates of 34,344 individual Palestinians whose identities were confirmed, with ongoing efforts to identify all casualties.^[89] Among confirmed child fatalities, 786 children are under one year of age, representing about 6 percent of killed children whose full identification details have been documented.^[90]

The Ministry reported that as of October 7, 2024, 35,055 children had lost one or both parents during the conflict.^[91] More than 14,500 children have reportedly been killed according to UNICEF, with many thousands more believed buried under rubble.^[92]

Undercounting and Indirect Deaths:

Multiple experts and organizations have warned that the official death toll significantly underestimates the true number of deaths.^[93]

Around mid-November 2023, the Gaza Health Ministry began to lose count of deaths, stating it struggled to update casualty tolls as a result of blackouts, high death tolls, and the destruction of the healthcare system.^[94] On January 6, 2024, the Ministry requested that civilians register their dead online, as the healthcare system collapse had resulted in the inability to maintain regularly updated death tolls.

The UN estimates that approximately 10,000 bodies remain buried under the rubble of destroyed buildings.^[95] The non-governmental organization Airwars, which undertakes detailed assessments of incidents in Gaza, often finds that not all names of identifiable victims are included in the Ministry's list.^[96]

In July 2024, correspondence published in *The Lancet* issued a stark warning that casualty figures based on direct death tolls alone significantly underestimated the total.^[97] The letter conservatively estimated that the conflict, accounting for both direct and indirect deaths, could result in up to 186,000 deaths when considering those who died from disease, lack of medical care, food insecurity, inadequate water and sanitation, and other conflict-related causes. Jean-François Corty, a humanitarian doctor and president of the NGO Doctors of the World, explained that the Gaza Health Ministry's figures account for identified dead bodies "without taking into account all the dead left under the rubble of the bombardments, or the indirect victims who died because of a lack of care or access to care, or from being transported to a health center."^[98]

A February 2024 joint study by the London School of Hygiene and Tropical Medicine and the Johns Hopkins Center for Humanitarian Health found that if the war continued at status quo, it would result in between 58,260 and 74,290 excess deaths by August 6, 2024.^[99]

4.2 Displacement and Living Conditions

Nearly 1.9 million people have been displaced within Gaza—approximately 85 percent of the territory's entire population—according to the UN Population Fund.^[100] Many have been

displaced multiple times as Israeli military operations have moved across different areas of the Strip. More than 43,000 pregnant women have been displaced, with the UN reporting that transportation challenges and severe shortages of medical personnel have compounded the crisis.^[101]

The living conditions for displaced persons are catastrophic. According to a Site Management Working Group assessment covering the period between November 4 and December 16, 2024, Key Informants reported that:^[102]

- In 75 percent of displacement sites, no humanitarian assistance had been received
- In 87 percent of sites, nobody or only a few people had access to sufficient food
- Overcrowding, inadequate sanitation, and lack of clean water created conditions ripe for disease outbreaks

Women and girls face heightened risks due to overcrowded shelters and inadequate sanitation facilities. The UN reports a rise in infections, with 25 percent of women experiencing skin conditions and other health issues.^[103] Menstrual hygiene has become nearly impossible to manage, as over 690,000 menstruating women lack access to basic sanitary supplies. The cost of essential items like soap has skyrocketed by 1,100 percent, making it impossible to maintain hygiene and increasing women's vulnerability to violence and exploitation.^[104]

UNRWA estimates that at least 563 internally displaced persons sheltering in UNRWA installations have been killed and at least 1,790 injured since the start of the war.^[105] UNRWA facilities, which traditionally provide refuge during conflicts, have themselves become targets, with numerous documented attacks on schools-turned-shelters.

4.3 Infrastructure Destruction

Nearly 70 percent of Gaza's infrastructure has been destroyed, according to UN assessments.^[106] By February 2024, the UN estimated that 35 percent of all buildings in Gaza had been destroyed.^[107] The scale of destruction is unprecedented in modern urban warfare.

Housing and Urban Infrastructure:

- Approximately 70 percent of residential areas have been destroyed^[108]
- Entire neighborhoods in Gaza City, Beit Hanoun, Beit Lahia, and other areas have been reduced to rubble
- The destruction has eliminated not just buildings but entire social structures and community networks
- Satellite imagery analysis shows systematic destruction patterns across multiple governorates

Healthcare System Collapse:

As of April 2024, the World Health Organization announced that only 12 of the 32 hospitals across Gaza were partially operational, and none were functioning at full capacity.^[109] The health system destruction includes:

- Direct attacks on medical facilities: Between January 2024 and April 2024, Israeli attacks reached Al Aqsa Martyrs Hospital, Nasser Medical Complex, and Al Amal Hospital, with both Nasser and Al Amal raided twice and rendered non-functional by the end of March 2024.^[110]
- Killing of healthcare workers: At least 685 healthcare workers have been killed in Gaza, according to protests by doctors at Maharajgunj Medical Campus in Nepal.^[111]
- Destruction of medical supplies and equipment: Hospitals have been stripped of essential equipment during military raids
- Siege of healthcare facilities: Multiple hospitals have been surrounded and cut off from supplies, fuel, and access

The fuel crisis constitutes a serious threat to the delivery of essential humanitarian operations. According to OCHA, the Health Cluster reports that all partially operational hospitals have exhausted their reserve fuel stocks and are relying on fuel delivered daily by partners to safeguard the most critical services.^[112] Water, sanitation, and hygiene (WASH) services risk coming to a halt due to lack of fuel.

According to an analysis published by Save the Children on January 14, 2025, an average of 475 children every month—or 15 children per day—sustained potentially lifelong disabilities, including severely injured limbs and hearing impairments, due to the use of explosive weapons in Gaza in 2024.^[113]

Educational and Cultural Destruction:

The destruction of educational infrastructure has been systematic and comprehensive:

- Schools and universities have been bombed, with many converted to military bases or destroyed entirely
- Libraries, archives, and cultural heritage sites have been damaged or destroyed
- The education of an entire generation has been disrupted, with long-term implications for Palestinian society

UNRWA reports that numerous incidents have impacted its installations, including schools-turned-shelters where civilians have been killed. During October-November 2024 alone:^[114]

- October 17: An airstrike on an UNRWA school in Jabalia killed 25 IDPs
- October 19: An UNRWA school west of Gaza City was hit, killing 11 people
- November 7: An Israeli Forces airstrike on an UNRWA school in Gaza City killed at least 12 IDPs

Agricultural Destruction:

A geospatial assessment carried out by the Food and Agriculture Organization (FAO) and UNOSAT between October and December 2024 reveals that 75 percent of fields once used to grow crops and olive tree orchards have been damaged or destroyed.^[115] More than two-thirds of Gaza's agricultural wells (1,531 in total), which rely on groundwater for irrigation and agriculture, were no longer functional as of early 2025, severely debilitating irrigation efforts.^[116]

4.4 The Famine Crisis and IPC Classification Debate

The Integrated Food Security Phase Classification System:

The Integrated Food Security Phase Classification (IPC) is a global partnership that serves as the main hunger monitor for the international community, designed to provide evidence-driven, objective classifications of acute food insecurity to direct humanitarian response.^[117] The IPC was developed in Somalia in 2004 by American aid worker Nicholas Haan and others, originally conceived to manage competing claims for limited aid resources during a crisis.^[118]

The IPC uses a five-phase classification system:^[119]

- **Phase 1: Minimal** - Households are able to meet essential food and non-food needs without engaging in atypical and unsustainable strategies
- **Phase 2: Stressed** - Households have minimally adequate food consumption but are unable to afford some essential non-food expenditures
- **Phase 3: Crisis** - Households have food consumption gaps with high or above-usual acute malnutrition, or are marginally able to meet minimum food needs by depleting essential livelihood assets
- **Phase 4: Emergency** - Households have large food consumption gaps resulting in very high acute malnutrition and excess mortality, or are able to mitigate large food consumption gaps only through emergency livelihood strategies and asset liquidation
- **Phase 5: Famine/Catastrophe** - Households experience an extreme lack of food and other basic needs where starvation, death, and destitution are evident

For an area to be classified as "in Famine" (Phase 5), three specific thresholds must be met simultaneously:^[120]

1. At least 20 percent of households suffer from an extreme lack of food
2. At least 30 percent of children are severely malnourished (based on weight-for-height z-scores or mid-upper arm circumference measurements)
3. At least 2 people per 10,000 are dying each day from outright starvation or from malnutrition combined with disease

Gaza's Unprecedented Food Insecurity:

Between November 24 and December 7, 2023, the IPC conducted its first analysis of Gaza during the current conflict. The findings were alarming: the entire population in Gaza (approximately 2.2 million people) was classified in IPC Phase 3 or above (Crisis or worse).^[121] This represented "the highest share of people facing high levels of acute food insecurity that the IPC initiative has ever classified for any given area or country."^[122]

The IPC's December 2023 Famine Review Committee warned: "There is a risk of Famine and it is increasing each day that the current situation of intense hostilities and restricted humanitarian access persists or worsens."^[123] The Committee noted that even though levels of acute malnutrition and non-trauma-related mortality might not have yet crossed famine thresholds, "these are typically the outcomes of prolonged and extreme food consumption gaps."^[124]

Five Warnings in One Year:

Five times in the course of the past year, the IPC warned that Gaza could be teetering on the precipice of famine.^[125] Each time, the watchdog stopped short of concluding that famine was under way, citing insufficient data to confirm that all three technical thresholds had been met. The five major IPC reports and alerts were:

1. **December 2023:** Risk of famine if intense conflict and restricted access persists through May 2024
2. **March 2024:** Famine projected as imminent in northern governorates (North Gaza and Gaza City) by May 2024, with half the population (1.11 million) expected to face catastrophic conditions^[126]
3. **June 2024:** Risk of famine in southern governorates if conflict escalates, but noted increases in aid deliveries
4. **October 2024:** Continued high levels of food insecurity with 1.84 million people in crisis or worse
5. **April 2025 (projected):** Entire population facing crisis or worse, with 470,000 in catastrophe and imminent famine risk^[127]

The March 2024 Famine Projection:

The most dramatic IPC alert came in March 2024, when the Famine Review Committee determined that famine was "imminent" in North Gaza and Gaza Governorates and was "expected to become manifest from mid-March 2024 to May 2024."^[128] The FRC concluded:

"The Famine threshold for acute food insecurity has already been far exceeded and the steeply increasing trend in malnutrition data indicates that it is highly likely that the Famine threshold for acute malnutrition has also been exceeded. The FRC expects the upward trend in non-trauma mortality to accelerate and for all Famine thresholds to be passed imminently."^[129]

According to the most likely scenario presented in March 2024, both North Gaza and Gaza Governorates were classified in IPC Phase 5 (Famine) with reasonable evidence, with 70 percent (around 210,000 people) of the population in these areas in Phase 5 (Catastrophe).^[130] For the entire Gaza Strip, half the population (1.11 million people) was expected to face catastrophic conditions, representing an increase of 530,000 people (92 percent) compared to the previous analysis.^[131]

The FRC emphasized a critical point: "It is vital to note that the projected Famine can be prevented or alleviated."^[132] The Committee called for "an immediate political decision for a ceasefire together with a significant and sustained increase in humanitarian assistance and the restoration of humanitarian access throughout Gaza."^[133]

Why Famine Was Not Confirmed:

In June 2024, the IPC's Famine Review Committee noted that the famine they had predicted in March likely did not occur due to increases in aid deliveries.^[134] However, the Committee could not definitively confirm whether famine thresholds had been crossed because of severe data limitations. Jeremy Konyndyk, president of Refugees International and former director of the U.S. Agency for International Development's Office of U.S. Foreign Disaster Assistance, stated: "A formal famine determination would signal a historically grave calamity brought about by the military tactics of the Israeli state... That word—famine—has a lot of power... It takes it from a technical determination to a historical judgment."^[135]

Konyndyk believes Israel allowed increased aid shipments specifically to avoid a famine finding: "That, of course, was not a historical judgment that the Israeli government wanted to be held responsible for."^[136] Israel's Coordinator of Government Activities in the Territories (COGAT) did not respond to questions about whether Israel allowed more aid into Gaza to prevent a famine determination, or whether outside pressure influenced Israel to temporarily loosen restrictions.^[137]

The Data Collection Challenge:

The fundamental challenge facing the IPC in Gaza is the inability to gather reliable, comprehensive data due to Israeli bombing, restrictions on movement, telecommunications blackouts, and the systematic obstruction of humanitarian operations. Many aid workers and doctors say famine has taken hold in Gaza, but the IPC has struggled to access key data on acute malnutrition levels and deaths unrelated to violence—metrics that are vital for determining if starvation has technically risen to the level of a famine.^[138]

Dr. Gregory Shay, a retired pediatric pulmonologist from California who volunteered with MedGlobal in October 2024, spent a month treating children at Nasser Hospital in Khan Younis. Shay, who has made 35 medical aid trips during the past decade, stated: "I've never seen the kind and number of infections that I saw in Gaza. You just look at these kids and you know that it's a famine."^[139]

Shay described treating an average of 40 new patients per day admitted to the hospital.^[140]

- Most children subsisted on bread and rice, lacking vegetables, fruit, or meat
- Many had severe cases of pneumonia
- Several suffered from meningitis, an illness that can kill in hours
- Newborns were often small for their age
- Some infants had birth defects or suffered from neonatal sepsis
- The pediatric ward averaged about 140 patients each day, but had only 40 beds
- Children and their mothers slept on mats in hallways
- Crowded conditions increased infection spread
- Many children suffered from dehydration, diarrhea, or hepatitis from drinking dirty water

The IPC typically obtains information from aid workers who conduct household-to-household surveys to collect data on acute malnutrition and death rates. In Gaza and other conflict zones, violence and repeated displacements make such surveys extremely difficult or impossible.^[141] The consequence: famine can be missed or discovered too late.

Dalmar Ainashe, a food-security analyst with relief group CARE who served for 10 years as a member of the IPC Technical Advisory Group and survived a famine as a child in Somalia, stated: "If we can't access critical information, confirming a famine becomes impossible—and so does saving lives. In the chaos of conflict, clinging to unattainable quantitative thresholds isn't just unrealistic. It's a fatal oversight that risks abandoning entire populations to suffer and die in silence."^[142]

Methodological Controversies and Political Interference:

The IPC's work in Gaza has faced unprecedented political attacks and methodological challenges. In August 2025, when the IPC finally confirmed that famine was occurring in Gaza Governorate, Israeli officials immediately blasted the assessment.^[143] Israel's COGAT issued a report claiming that the IPC's "famine classification rests on an unpublished phone survey and questionable assessments by UNRWA, a U.N. agency known for its workers being an integral part of Hamas, and local NGOs, while speculating wildly about mortality rates that even Hamas's own Health Ministry does not report."^[144]

Critics of the IPC, including Israeli officials, have claimed that the organization changed its methodology to make declaring a famine easier. However, independent food security experts and people close to the IPC process say those assertions are false. Changes to IPC's assessments that critics complain about were made six years ago, long before the start of the latest Israel-Hamas war.^[145]

The IPC's use of mid-upper arm circumference (MUAC) measurements for child malnutrition assessments—which Israeli critics questioned—has long been an accepted standard in humanitarian emergencies. Alex de Waal, a food security expert at the World Peace Foundation at Tufts University, explained: "MUAC has long been used as a measure for child

malnutrition, especially in difficult situations where it is hard to do the highest quality surveys. Israeli critics of the IPC should demand that Israel permit better data gathering rather than criticizing the data gathering that is possible under current constraints."^[146]

To avoid political interference, the IPC adopted a new methodology called a "globally led assessment" for Gaza reports, essentially a way to avoid working with potentially obstructive governments.^[147] This methodology, which involves international experts conducting the analysis without direct government participation, was previously used in famine classifications in South Sudan (November 2020) and Sudan (December 2024), as well as in all previous reviews of the situation in Gaza.^[148]

The FEWS NET Controversy:

In December 2024, the U.S. government's own hunger monitor, the Famine Early Warning Systems Network (FEWS NET), published a report that projected famine by early 2025 in part of northern Gaza.^[149] After the report was issued, U.S. Ambassador to Israel Jack Lew wrote that it relied on data that "is outdated and inaccurate."^[150] Following Lew's critique, FEWS NET withdrew the report, stating that its alert is "under further review" and that it expects to update the report in January 2025.^[151]

Alex de Waal decried Lew's comments, stating that the situation underscores how the dearth of numeric data demands reliance "on extrapolation, inference, empirical evidence, logic, and expert judgment."^[152] If the U.S. were concerned about the quality of data, de Waal argued, "it would be straightforward to demand that Israel permit international agencies to operate and collect such data."^[153]

Expert Estimates of Starvation Deaths:

According to various methods of measuring hunger that pre-date the IPC system, Gaza is already mired in famine. In a recent essay, Alex de Waal estimated that starvation and related diseases have claimed at least 10,000 lives in Gaza.^[154] He explained that his assessment is an approximation, not a tally: he reached the figure by examining a range of death estimates from the territory and reviewing mortality figures in other countries beset by food emergencies similar to those in Gaza.

De Waal emphasized a crucial point about the debates over exact death tolls: "We need to dethrone the concept that if it's not famine, it's OK. Even if it's not a famine, it can be truly terrible."^[155]

Current Food Insecurity Data:

As of November 2024, an estimated 1.84 million people in Gaza face crisis levels of hunger (IPC Phase 3 or above), including:^[156]

- Over 3,000 pregnant women experiencing catastrophic levels of food insecurity (IPC Phase 5)
- An additional 15,000 pregnant women on the verge of catastrophic levels of hunger
- 16,500 pregnant and breastfeeding women expected to face acute malnutrition (IPC Phase 3) across Gaza in coming months without sustained aid

Markets have almost completely dried up due to a sharp decline in the entry of private commercial trucks into Gaza, which reached its lowest level in October 2024 compared to any month since the war began.^[157] Over 20,000 children were admitted for treatment for acute malnutrition between April and mid-July 2024, with more than 3,000 severely malnourished.^[158] Hospitals have reported a rapid increase in hunger-related deaths among children.

According to the IPC's April 2025 projections, the entire population of Gaza (approximately 2.1 million people) is expected to face Crisis or worse acute food insecurity (IPC Phase 3 or above), including:^[159]

- 470,000 people (22 percent) in Catastrophe (IPC Phase 5)
- Over 1 million people (54 percent) in Emergency (IPC Phase 4)
- The remaining 500,000 (24 percent) in Crisis (IPC Phase 3)

The FAO Director-General QU Dongyu stated: "The international community must act now. The immediate restoration of access to humanitarian and commercial supplies at scale is critical. Every delay deepens hunger and accelerates starvation, bringing us closer to famine. If we fail to act, we are failing to uphold the right to food, which is a basic human right."^[160]

Humanitarian Aid Obstruction:

In October 2024, an average of only 37 humanitarian trucks per day entered Gaza—the lowest daily average since October 2023 when Israeli authorities first allowed aid trucks to enter after the war started.^[161] According to OCHA, between January 1-13, 2025, out of 204 coordinated humanitarian movements across Gaza:^[162]

- 70 were denied access by Israeli authorities
- 31 faced impediments
- 20 were cancelled due to logistical and security challenges
- Only 83 were facilitated

Out of 32 aid movements that needed to pass through Israeli military-controlled checkpoints to reach areas north of Wadi Gaza during this period:^[163]

- 12 were denied
- 7 faced impediments

- 4 were cancelled
- Only 9 were facilitated

These figures include ten attempts to reach the besieged area in North Gaza, of which eight were denied and two withdrawn. Aid missions to areas in Rafah governorate, under ongoing Israeli military operation since May 2024, faced similar challenges, with 15 out of 22 coordinated requests denied between January 1-13, 2025.^[164]

Essential resources such as food, shelter materials, and hygiene kits remain stuck at borders or in warehouses. The recent vote by the Israeli Parliament to ban UNRWA operations further threatens aid delivery for Palestinian refugees, jeopardizing the foundation of humanitarian operations in Gaza.^[165] UNRWA provides critical support in health, education, and essential services; banning it from operating will undoubtedly exacerbate suffering and worsen conditions for those already in dire need.

Proposals for Reform:

Some experts want the IPC to lower its threshold for determining famine in conflict-ridden areas and expand the types of data it uses. Ainashe argues that the IPC should accept not just numerical data for some thresholds, but also anecdotal information from doctors, families, and aid workers indicating that malnutrition and mortality rates are rising fast when quantitative data cannot be collected.^[166] The system, he argues, must "err on the side of saving lives."

Chris Newton, a former IPC analyst and now visiting fellow at the Feinstein International Center at Tufts University, believes that "the IPC approach has lost sight of what famine is in the real world. Given the risks of mass death, it needs to find better ways to incorporate every potentially useful piece of information available."^[167]

Some experts suggest the IPC should explore expanded use of:^[168]

- Satellite imagery to track displacement patterns, crop growth, and grave sites (as Reuters did in Sudan)
- Remote sensing technologies
- In-depth qualitative interviews with affected populations about survival strategies
- Social media and telecommunications data
- Medical facility records and testimonials

Jose Lopez, the IPC's global program manager, acknowledges that the hunger monitor does rely on various types of evidence to "ensure that IPC analysis findings are robust and thus credible."^[169] However, he warns that lowering data requirements too much "would put the credibility of the IPC at risk and would likely result in weaker action."^[170]

The IPC says it has adapted its methods in locations affected by conflict, such as using phone surveys in areas data collectors cannot visit.^[171] However, these phone surveys have

their own limitations—they may not reach the most vulnerable populations, and in Gaza's case, telecommunications infrastructure has been repeatedly destroyed during the conflict.

Legal Implications of Famine Findings:

An IPC famine finding could be used in legal cases against Israel or its officials. Tom Dannenbaum, associate professor of international law at Tufts University's Fletcher School of Law and Diplomacy, explained that although a famine finding would not be necessary to prove criminal liability in the ICC case against Netanyahu and Gallant, "it would emphasize the extreme urgency of changing Israel's behavior."^[172]

The November 2024 ICC arrest warrants specifically cited "starvation as a method of warfare" as one of the war crimes charged. The IPC's findings and the ongoing famine debate provide crucial context and evidence for such charges. Similarly, starvation is at the crux of South Africa's genocide case at the ICJ, which explicitly alleges that Israel has deliberately inflicted conditions of life calculated to bring about the physical destruction of Palestinians in Gaza.^[173]

V. The Global Protest Movement: Unprecedented Mobilization

5.1 Scale, Scope, and Geographic Distribution

The Gaza conflict has sparked one of the largest and most sustained global protest movements in recent history, comparable in scale to the demonstrations against the Iraq War in 2003 and the global Black Lives Matter protests of 2020.^[174] According to the Armed Conflict Location & Event Data Project (ACLED), demonstrations occurred worldwide from October 7, 2023, onwards, with most protests concentrated in the Middle East, Western Europe, North Africa, and the United States.^[175]

By December 5, 2023—less than two months into the conflict—more than one million Americans alone had participated in protests across over 2,600 events.^[176] Of these events, approximately 2,100 were in support of Palestine and called for a ceasefire, while 442 were in support of Israel. The disparity in numbers reflects the growing public concern about the humanitarian catastrophe unfolding in Gaza.

Following a decline in demonstration activity in mid-2024, protests rose in October to their highest levels since May, when university students erected pro-Palestinian demonstration camps across the United States.^[177] The October surge in demonstrations coincided with the war's first anniversary and Israel's pivot to northern operations with increased strikes against Hezbollah targets and a ground offensive in Lebanon.

European Mobilization:

Europe witnessed some of the largest demonstrations, with hundreds of thousands taking to the streets in multiple countries:

- **United Kingdom:** Approximately 250,000 people participated in a single protest in London in February 2024, according to the Palestine Solidarity Campaign, demanding a ceasefire in Gaza.^[178] Multiple demonstrations in London attracted hundreds of thousands of participants, with organizers reporting several protests ranking among the largest since the war began. One demonstration was expected to be among the top three in terms of size since October 2023.^[179] A YouGov poll indicated that two-thirds of people in the UK supported an immediate ceasefire as of February 2024.^[180]
- **Spain:** Thousands marched through Madrid in February 2024, with the crowd snaking through closed-off streets from Atocha train station to the central Plaza del Sol square behind a large banner reading "Freedom for Palestine."^[181] At least six ministers from Prime Minister Pedro Sanchez's cabinet participated in the demonstration. In October 2024, additional protests occurred in Barcelona and Madrid to mark the one-year anniversary.
- **Belgium:** On December 18, 2023, 27,000 demonstrators marched in Brussels calling for an immediate and permanent ceasefire. Additional protests occurred on January 21, 2024, ahead of a foreign ministers meeting.^[182]
- **Germany:** Protests in Berlin on October 7, 2024, marked the one-year anniversary, though German authorities have placed significant restrictions on pro-Palestinian demonstrations, leading to tensions between protesters and police.^[183]
- **France:** Demonstrations occurred in Paris and other major cities, with protesters demanding an end to the bombardment and calling for France to cease arms sales to Israel.
- **Netherlands:** Thousands gathered in Amsterdam in October 2024, carrying Palestinian and Lebanese flags and demanding a ceasefire.^[184]
- **Ireland:** Several hundred people took to the streets in Dublin, waving Palestinian flags and chanting "Ceasefire now!"^[185]

Middle East and North Africa:

Massive protests erupted across the Arab world and Middle East, where solidarity with Palestinians runs deep:

- **Jordan:** Tens of thousands demonstrated in Amman and other cities, with protests often occurring after Friday prayers.
- **Turkey:** Demonstrators in Ankara waved Turkish and Palestinian flags during protests to express support for Palestinians.^[186]
- **Yemen:** Thousands of Houthi supporters in Sanaa raised Hezbollah flags and posters of Hassan Nasrallah during rallies on October 7, 2024.^[187]

- **Lebanon:** Lebanese and Palestinians burned representations of Israeli and U.S. flags during commemorations marking the one-year anniversary in the southern port city of Sidon.^[188]
- **Egypt, Morocco, Tunisia:** Protests occurred in major cities across North Africa, with demonstrators calling for Arab governments to take stronger positions against Israel.

Asia and Pacific:

- **Indonesia:** On January 13, 2024, thousands rallied at the U.S. embassy in Jakarta as part of a "global day of action." Additional large protests occurred on August 3, 2024, and October 6, 2024. On October 6, protesters carried dolls shrouded in white cloth to represent children killed in Gaza and walked on a large image of Israeli Prime Minister Benjamin Netanyahu during a rally outside the U.S. embassy.^[189]
- **Japan:** On November 20, 2023, around 1,500 protesters demonstrated in Tokyo calling for a ceasefire. A single protester demonstrated alone for three months since November 2023 holding a banner reading "Stop Gaza Genocide." On February 4, 2024, more than 50 pro-Palestinian protesters marched in front of the Atomic Bomb Dome in Hiroshima. On July 15, dozens participated in a march in solidarity with Gaza in Namba, Osaka Prefecture.^[190] Nagasaki mayor Shiro Suzuki disinvited representatives from Israel from the 79th annual commemoration of the U.S. atomic bombing in July 2024.^[191]
- **India:** About 150 protesters gathered in New Delhi on October 7, 2024, in a peaceful rally to support the Palestinian people, with activist Bhavna Sharma stating: "Every day, people are dying. They don't have food. They are starving."^[192]
- **Pakistan:** Following Friday prayers on October 13, 2023, public gatherings expressing support for Palestine were held across major cities including Karachi, Lahore, Peshawar, and Islamabad, with American and Israeli flags burned in demonstrations. On January 13, 2024, large crowds gathered in front of the Lahore Press Club as part of the "global day of action." Additional protests occurred in October 2024 in Lahore to oppose Israeli air strikes and show solidarity with Gaza and Lebanon.^[193]
- **Malaysia:** People marched in Kuala Lumpur in October 2024 to protest Israeli attacks in Gaza and Lebanon.^[194]
- **Australia:** Protests occurred in Sydney and other major cities, with demonstrators calling for the government to take a stronger stance.
- **Nepal:** On October 31, 2023, the Human Rights and Peace Society organized a demonstration outside the United Nations office in Lalitpur. On March 29, 2024, doctors and healthcare workers from Maharajgunj Medical Campus held a protest outside the Israeli embassy, condemning the killing of over 685 healthcare workers in Palestine.^[195]

Americas:

- **United States:** More than 1,000 protesters demonstrated outside the White House on October 5, 2024, prior to the one-year anniversary of October 7. During the protest, one man attempted to set himself on fire, lighting his left arm ablaze before bystanders and

police extinguished the flames.^[196] On January 14, 2024, protesters organized by Code Pink threw baby dolls covered in fake blood at the White House as part of the "National March 4 Gaza."^[197] Thousands also gathered at Times Square in New York, holding Palestinian and Lebanese flags, and marched through downtown Los Angeles.^[198]

- **Canada:** Demonstrators gathered at Yonge and Dundas Square in Toronto in October 2024.^[199]
- **Mexico:** People gathered on Reforma Avenue in Mexico City in October 2024 to protest against Israel's attacks approaching the first anniversary.^[200]
- **Venezuela:** In Caracas, hundreds of pro-Palestinian demonstrators protested outside the United Nations headquarters for Venezuela, carrying a giant Palestinian flag.^[201]
- **Argentina, Brazil, Chile:** Protests occurred in major cities across South America, with Buenos Aires hosting significant demonstrations.

Africa:

- **South Africa:** Hundreds walked to parliament in Cape Town, chanting "Israel is a racist state" and "We are all Palestinian."^[202] Pro-Gaza marches also occurred in Johannesburg and Durban. South Africa's leadership of the ICJ case against Israel has made it a focal point for pro-Palestinian activism on the continent.

5.2 The Global Days of Action

Several "global days of action" saw coordinated protests across dozens of countries simultaneously:

January 13, 2024: A coordinated global day of action saw thousands protest in cities worldwide, including Jakarta, Tokyo, Brussels, Vienna, Karachi, and other major cities.^[203] The synchronized timing demonstrated the organized nature of the global movement and the power of social media to coordinate transnational activism.

October 5-7, 2024 (One-Year Anniversary): Marking the one-year anniversary of October 7, tens of thousands took to the streets in major cities around the world.^[204] Protests occurred in:

- New Delhi (India)
- Lahore (Pakistan)
- Berlin (Germany)
- Madrid (Spain)
- Barcelona (Spain)
- Amsterdam (Netherlands)
- Dublin (Ireland)
- Paris (France)
- Tokyo (Japan)

- Jakarta (Indonesia)
- Cape Town (South Africa)
- Ankara (Turkey)
- Buenos Aires (Argentina)
- Mexico City (Mexico)
- Los Angeles (USA)
- New York (USA)
- Washington DC (USA)
- Toronto (Canada)

The coordinated nature of these protests, spanning six continents and dozens of time zones, illustrated the global nature of concern about the Gaza crisis and the effectiveness of international organizing networks.

5.3 Key Protest Demands and Themes

While protests varied in their specific demands based on local contexts and political conditions, several core demands were consistent across the global movement:^[205]

Primary Demands:

1. **Immediate and permanent ceasefire** - The most universal demand across all protests
2. **End to the blockade and occupation of Gaza** - Recognition that the crisis predates October 7, 2023
3. **Unrestricted humanitarian aid access** - Allowing food, water, medicine, and fuel to enter Gaza
4. **Arms embargo on Israel** - Particularly targeting countries supplying weapons used in Gaza
5. **Accountability for war crimes and genocide** - Support for ICC and ICJ proceedings
6. **End to U.S. and Western military support for Israel** - Targeting complicity of supporting states
7. **Recognition of Palestinian statehood and rights** - Broader political demands beyond the immediate crisis

Slogans and Messaging: Common chants and signs included:

- "Ceasefire now!"
- "Free Palestine"
- "Stop the genocide in Gaza"
- "From the river to the sea, Palestine will be free" (a controversial slogan with different interpretations)
- "Not in our name" (used by protesters in countries supporting Israel)
- "End the occupation"

- "Stop arming Israel"

Symbols and Visual Culture:

- Palestinian flags (red, green, white, and black with a red triangle)
- Keffiyehs (traditional Palestinian scarves) worn by protesters
- Images of destroyed buildings and casualties from Gaza
- Red hands symbolizing blood on politicians' hands
- Mock body bags and shrouded figures representing the dead
- Children's shoes arranged to represent child casualties

5.4 University Campus Movements and Student Activism

Beginning in April 2024, an escalation of pro-Palestinian protests occurred on university campuses across the United States and internationally, marking a new phase in the protest movement characterized by sustained occupations and direct confrontation with university administrations.^[206]

The Encampment Movement:

Students erected encampments on campuses, setting up tents and creating autonomous zones where they held teach-ins, organized mutual aid, and demanded that universities divest from companies with ties to Israel's military operations. The encampment strategy drew inspiration from historical student movements, particularly the anti-apartheid divestment campaigns of the 1980s.

Major university protests included:

Columbia University: The movement gained national prominence when students at Columbia established an encampment on the university's lawn in April 2024. The administration's decision to call in police to clear the encampment sparked widespread condemnation and inspired solidarity protests at other campuses. Over 100 students were arrested at Columbia during the protests.^[207]

Yale University: Students established an encampment and faced arrests when the administration moved to clear it. The protests sparked debates about free speech and the limits of protest on private university campuses.

Harvard University: Despite Harvard's reputation for protecting free speech, the administration took a hard line against encampments, leading to tensions between students and faculty.

Ohio State University: A solidarity encampment constructed on OSU's South Oval on April 25, 2024, resulted in at least 36 arrests, making it the largest en masse arrest on campus since the 1969-1970 Vietnam War protests.^[208]

University of California campuses: UCLA, Berkeley, and other UC campuses saw major encampments and, in some cases, violent confrontations between pro-Palestinian and pro-Israel groups.

Demands:

Student protesters typically demanded:^[209]

- **Divestment:** Universities should divest endowment funds from companies profiting from or supplying Israel's military operations
- **Disclosure:** Full transparency about university investments and partnerships
- **Disavowal:** Universities should condemn Israel's actions in Gaza and support a ceasefire
- **Academic boycott:** Some groups called for cutting academic ties with Israeli institutions
- **Protection for Palestinian students:** Ensuring safety and opposing censorship of pro-Palestinian speech

International Spread:

The student movement spread internationally:

- **United Kingdom:** Protests at Oxford, Cambridge, and other universities
- **France:** Student occupations at Sciences Po and other institutions
- **Germany:** Protests at universities despite government restrictions
- **Australia:** Encampments at Australian universities
- **Canada:** Student protests at McGill, Toronto, and other universities

Faculty and Staff Support:

In many cases, faculty members joined student protests or issued statements of support. At Columbia, over 100 faculty members formed a human chain to protect students from police. Some faculty faced professional consequences for their participation or statements supporting Palestinian rights.

5.5 Labor Movement and Worker Actions

The labor movement played a significant role in the global protest response, with unions and workers organizing strikes, work stoppages, and public statements demanding a ceasefire.

^[210]

U.S. Congressional and Federal Workers:

- **November 8, 2023:** Over 100 U.S. congressional staffers staged a walk-out demanding a ceasefire, gathering on the steps of the Capitol to call for their employers to support the Ceasefire Now Resolution.^[211]

- **White House Interns:** A group of 40 White House interns sent a letter to President Biden stating they would "no longer remain silent" about what they characterized as genocide in Gaza.^[212]

International Labor Actions:

- **Dock workers:** In some ports, dock workers refused to unload ships carrying weapons destined for Israel
- **Transport workers:** Some transport unions passed resolutions opposing arms shipments
- **Healthcare workers:** Medical professionals organized protests and issued statements condemning attacks on Gaza's healthcare system

5.6 Faith Community Responses

Religious communities across multiple faiths organized responses to the Gaza crisis, with significant diversity of opinion within each tradition.

Jewish Communities:

Jewish communities worldwide experienced deep divisions over the conflict:

- **Jewish Voice for Peace** and **IfNotNow** organized major protests, including civil disobedience actions
- In late November 2023, pro-ceasefire Jewish demonstrators led a protest where 18 members of Congress arrested at the Cannon House Office Building on October 18, 2023^[213]
- Some synagogues and Jewish organizations strongly supported Israel, while others called for ceasefire and criticized Israeli policies
- The protests sparked important internal conversations within Jewish communities about the relationship between Jewish identity, Zionism, and support for Israeli government policies

Muslim Communities:

Muslim communities globally organized protests and humanitarian responses:

- Demonstrations often occurred after Friday prayers at mosques
- Islamic relief organizations mobilized fundraising for Gaza relief efforts
- Muslim student organizations led campus activism

Christian Communities:

Christian responses varied widely:

- Some evangelical Christian groups strongly supported Israel for theological reasons

- Mainline Protestant churches and Catholic organizations called for ceasefire and humanitarian access
- Palestinian Christians and their supporters highlighted the plight of Christian communities in Gaza and the West Bank

5.7 Cultural Figures and Institutions

Numerous artists, writers, actors, musicians, and cultural institutions took positions on the Gaza conflict:

Open Letters and Statements:

- Thousands of artists, actors, and cultural workers signed open letters calling for ceasefire
- Some major cultural institutions issued statements, while others faced internal conflicts over whether to take positions

Boycott and Divestment:

- Some artists canceled performances in Israel or refused to perform for institutions with Israeli government ties
- Cultural institutions faced pressure to sever relationships with Israeli institutions or to decline funding from sources associated with Israeli policies

Artistic Responses:

- Musicians wrote songs about Gaza
- Visual artists created works commemorating Palestinian suffering
- Writers penned essays, poems, and articles
- Filmmakers produced documentaries about the crisis

5.8 Controversies, Repression, and Free Speech Debates

The protests sparked intense debates about free speech, antisemitism, Islamophobia, and the limits of acceptable political expression.^[214]

Accusations of Antisemitism:

Pro-Israel groups and some governments accused the protest movement of antisemitism, pointing to:^[215]

- Use of slogans like "From the river to the sea" that some interpret as calling for Israel's elimination
- Incidents where Jewish students reported feeling unsafe or threatened
- Some protesters' failure to condemn Hamas's October 7 attacks
- Conflation of Israeli policies with Jewish people generally

Defenders of the protests argued that:

- Criticism of Israeli government policies is not inherently antisemitic
- The vast majority of protests were peaceful and did not target Jewish people
- Palestinian protesters and their supporters have the right to express their political views
- Accusations of antisemitism are sometimes used to silence legitimate criticism

Government Restrictions:

Several countries imposed restrictions on pro-Palestinian protests:

- **France** initially banned pro-Palestinian demonstrations, though some bans were later overturned by courts
- **Germany** placed significant restrictions on pro-Palestinian speech and protests, with police intervening in many demonstrations
- **United Kingdom** considered legislation to limit protests, though ultimately allowed them to proceed with restrictions
- **Hungary** and some other countries sought to criminalize certain pro-Palestinian expressions

University Responses:

University responses to student protests varied widely:

- Some called in police to clear encampments, leading to mass arrests
- Others negotiated with students and made commitments to review investment policies
- Several university presidents faced congressional hearings about antisemitism on campus, with some losing their positions
- Debates erupted about the balance between free speech, campus safety, and university neutrality

Arrests and Legal Consequences:

Throughout 2024, hundreds of protesters faced arrest:

- In Chicago alone, multiple arrests occurred during protests on Black Friday 2023, Christmas Eve, and New Year's Eve^[216]
- In Washington, D.C., repeated protests at the Capitol led to hundreds of arrests^[217]
- Student protesters faced academic consequences including suspensions and expulsions
- Some faced criminal charges, though many charges were later dropped

VI. Expert Assessments: Genocide Scholars and UN Officials

6.1 The International Association of Genocide Scholars

On August 31, 2025, the International Association of Genocide Scholars (IAGS), the world's largest professional organization of scholars studying genocide with approximately 500 members worldwide including numerous Holocaust experts, passed a historic resolution stating that Israel's policies and actions in Gaza meet the legal definition of genocide according to the 1948 UN Convention.^[218] The resolution was supported by 86 percent of those who voted, representing an overwhelming consensus among the world's leading genocide experts.^[219]

The Resolution's Findings:

The three-page IAGS resolution declared that "Israel's policies and actions in Gaza meet the legal definition of genocide" as well as crimes against humanity and war crimes.^[220] The resolution acknowledged that Hamas's October 7 attack "constitutes international crimes," but focused its genocide determination on Israeli actions.

The resolution called on Israel to "immediately cease all acts that constitute genocide, war crimes and crimes against humanity against Palestinians in Gaza."^[221] It also called on the international community to take action to prevent and punish the crime of genocide in accordance with the Genocide Convention.

Professor Melanie O'Brien, IAGS president and a professor of international law at the University of Western Australia, stated in an interview: "People who are experts in the study of genocide can see this situation for what it is."^[222] O'Brien emphasized that the resolution was based on careful analysis of the evidence according to the legal standards established by the Genocide Convention and subsequent case law.

Historical Context and Precedent:

This is not the first time IAGS has issued a genocide determination. The organization has previously held that:^[223]

- China's treatment of Uyghurs meets the threshold for genocide
- Myanmar's brutal crackdown on Rohingya Muslims constitutes genocide
- In 2006, statements by then-Iranian President Mahmoud Ahmadinejad calling for Israel to be "wiped off the map" had "genocidal intent" and required urgent action

However, the Gaza resolution is particularly significant because it represents the first time IAGS has determined that a Western-allied democratic state is committing genocide. The organization, founded in 1994, has established itself as the leading academic authority on genocide studies, bringing together researchers, practitioners, and survivors focused on understanding, preventing, and responding to genocide.

Israel's Response:

Israel's Foreign Ministry rejected the IAGS declaration as "disgraceful" and "an embarrassment to the legal profession and to any academic standard."^[224] The Ministry stated: "It is entirely based on Hamas's campaign of lies and the laundering of those lies by others," asserting that genocide allegations should be directed at Hamas, not Israel. The Ministry added: "The IAGS has set a historic precedent—for the first time, 'Genocide Scholars' accuse the very victim of genocide—despite Hamas's attempted genocide against the Jewish people."^[225]

The Ministry's response reflects Israel's consistent position that it is conducting legitimate military operations in self-defense against Hamas, that it takes measures to protect civilians, and that genocide accusations are politically motivated attempts to delegitimize Israel's right to exist and defend itself.

6.2 Early Scholarly Warnings and Mobilization

The scholarly response to the Gaza crisis began remarkably quickly, with experts raising alarms about potential genocide within days of the October 7, 2023, Hamas attacks and Israel's subsequent military response.

October 15, 2023 - First Major Statement:

Just one week after October 7, more than 800 scholars and practitioners of international law, conflict studies, and genocide studies signed a public statement "to sound the alarm about the possibility of the crime of genocide being perpetrated by Israeli forces against Palestinians in the Gaza Strip."^[226] This early statement, issued when the death toll was still under 20 percent of current levels, highlighted:^[227]

- Overwhelming evidence of disproportionate attacks and indiscriminate bombing
- Destruction of residential neighborhoods
- Use of starvation as a weapon through complete cutoff of water, food, electricity, and medical supplies
- Statements by Israeli officials that exhibited genocidal intent
- The historical context of occupation and blockade

The speed of this initial scholarly mobilization was unprecedented, reflecting the severity of what experts were witnessing in real-time through media reports, satellite imagery, and testimonies from those in Gaza.

October 13, 2023 - Raz Segal's "Textbook Case":

Historian Raz Segal, an associate professor of Holocaust and genocide studies at Stockton University and himself an Israeli, was one of the first scholars to explicitly state that Israel was committing a "textbook case of genocide."^[228] Segal's analysis, published on October 13, 2023, argued that Israeli officials' statements combined with the conduct of military operations demonstrated the specific intent required for genocide.

Segal pointed to statements by Israeli officials such as:

- Defense Minister Yoav Gallant's declaration that "We are fighting human animals" and that Gaza would face a complete siege with "no electricity, no food, no fuel"[229]
- President Isaac Herzog's statement that "It is an entire nation out there that is responsible"
- Other officials calling for Gaza to be "erased" or turned into a "tent city"

December 9, 2023 - Holocaust Scholars' Statement:

On December 9, 2023, more than 55 Holocaust and genocide scholars published a statement warning of "the danger of genocide in Israel's attack on Gaza." [230] The statement began: "We, scholars of the Holocaust, genocide, and mass violence, feel compelled to warn of the danger of genocide in Israel's attack on Gaza." [231]

The scholars noted: [232]

- The mass murder of over 1,200 Israelis by Hamas, Islamic Jihad, and others on October 7, along with evidence of gender-based and sexual violence, the destruction of Israeli kibbutzim and towns, and the abduction of more than 240 hostages, all of which constitute war crimes and crimes against humanity
- That violence in Israel and Palestine did not begin on October 7, and that the current crisis must be understood in historical context
- That Palestinians under Israeli military occupation in the West Bank and East Jerusalem and Palestinian citizens of Israel also face grave danger if the attack continues and escalates
- The starvation, mass killing, and forced displacement of Palestinian civilians in Gaza is ongoing, raising the question of genocide, especially in view of the intentions expressed by Israeli leaders

This statement was particularly significant because it came from Holocaust scholars—experts whose specialized knowledge of the paradigmatic genocide lends particular weight to their assessments. Some scholars who signed the statement are themselves Holocaust survivors or children of survivors.

6.3 The Journal of Genocide Research Forum

The public split among genocide and Holocaust scholars prompted the Journal of Genocide Research, the leading and oldest periodical in the field, to organize a forum on "Israel-Palestine: Atrocity Crimes and the Crisis of Holocaust and Genocide Studies." [233] The journal invited leading figures in the field to put forward their contributions with the goal of injecting more restraint and judiciousness into the debate.

The forum revealed deep divisions within the field:

Martin Shaw: In his article "Inescapably Genocidal," Shaw affirmed the genocidal consequences of Israel's massive bombardment of Gaza, which he argued "represented a strategic choice" rather than a tactical mishap.^[234] Shaw maintained that the term "genocide" remains relevant and cannot be replaced by alternatives. However, he controversially added that Hamas had knowingly provoked Israel's genocidal acts and was thus complicit in them, arguing that Hamas was genocidal on October 7 and also guilty of luring Israel into its own genocide against the people of Gaza.^[235]

Israel Charny: A well-known genocide scholar and co-founder of IAGS, Charny took the opposite position, arguing that Israel is "fighting back legitimately in self-defense" and that even should a ceasefire happen, "Israel should underscore its readiness to return to massive destruction of Gaza in response to any further bombings or invasions by Hamas."^[236] Charny rejected the genocide characterization and criticized scholars who made such claims.

Omer Bartov: Holocaust historian Omer Bartov, a professor at Brown University, drew parallels between the mindset of IDF soldiers in Gaza and Wehrmacht soldiers in Russia, stating: "Having internalized certain views of the enemy—the Bolsheviks as Untermenschen; Hamas as human animals—and of the wider population as less than human and undeserving of rights, soldiers observing or perpetrating atrocities tend to ascribe them not to their own military, or to themselves, but to the enemy."^[237]

Daniel Blatman: In October 2024, Blatman's op-ed slammed Israel's "Generals Plan" for northern Gaza, calling it "a terrible war crime that ranges from ethnic cleansing to genocide."^[238]

The forum illustrated that while there is growing consensus among genocide scholars that genocide is occurring in Gaza, significant disagreement remains, particularly among those with close ties to Israel or strong ideological commitments to Zionism.

6.4 UN Special Rapporteur Francesca Albanese

Francesca Albanese, the UN Special Rapporteur on the situation of human rights in the occupied Palestinian territories, has emerged as one of the most prominent and controversial voices asserting that Israel is committing genocide in Gaza.^[239]

March 26, 2024 - "Anatomy of a Genocide":

On March 26, 2024, Albanese presented a report to the UN Human Rights Council titled "Anatomy of a Genocide," concluding there are "reasonable grounds" to believe that Israel is committing genocide against Palestinians in Gaza.^[240] The 84-page report represents one of the most comprehensive legal analyses of the genocide allegations by a UN official.

Albanese stated before the Council:^[241]

"Following nearly six months of unrelenting Israeli assault on occupied Gaza, it is my solemn duty to report on the worst of what humanity is capable of, and to present my findings. There are reasonable grounds to believe that the threshold indicating the commission of the crime of genocide...has been met."

The report found that Israel has committed three acts of genocide with the requisite intent:
[242]

1. **Killing members of the group** - The systematic killing of Palestinians in Gaza, including through bombing of residential areas, hospitals, schools, and refugee camps
2. **Causing serious bodily or mental harm to members of the group** - The widespread infliction of severe physical and psychological trauma on the Palestinian population
3. **Deliberately inflicting on the group conditions of life calculated to bring about its physical destruction** - The siege, blockade, destruction of essential infrastructure, and denial of food, water, fuel, and medicine

The Intent Finding:

A key aspect of Albanese's analysis was her determination of genocidal intent. She identified several categories of evidence:
[243]

Dehumanizing Statements by Officials:

- Defense Minister Yoav Gallant: "We are fighting human animals"
- President Isaac Herzog: "It is an entire nation out there that is responsible"
- Heritage Minister Amihai Eliyahu: Dropping a nuclear bomb on Gaza is "one way" to deal with the situation
- Numerous other statements by ministers, military officials, and members of Knesset calling for Gaza to be erased, for Palestinians to be driven to Sinai, and for collective punishment

Pattern of Conduct:

- The scale and intensity of bombing
- The targeting of civilian infrastructure including homes, schools, hospitals, mosques, and churches
- The systematic destruction of agriculture and water systems
- The complete siege cutting off food, water, fuel, and electricity
- The blocking of humanitarian aid
- The forced displacement of nearly the entire population

Historical Context:

- The 75-year Nakba (catastrophe/ethnic cleansing of Palestinians in 1948)
- 56 years of military occupation

- 16-year blockade of Gaza
- Pattern of previous assaults on Gaza (2008-2009, 2012, 2014, 2021)

Albanese concluded:^[244]

"The genocide in Gaza is the most extreme stage of a long-standing settler colonial process of erasure of the native Palestinians. For over 76 years, this process has oppressed the Palestinians as a people in every way imaginable, crushing their inalienable right to self-determination demographically, economically, territorially, culturally and politically."

October 2024 - "Genocide as Colonial Erasure":

In October 2024, Albanese released a second report, "Genocide as Colonial Erasure," expanding her analysis and documenting developments in the months since her first report.^[245] The second report concluded that despite ICJ provisional measures, "genocidal acts have proliferated" and "the calculated destruction of Gaza" has continued.^[246]

The report noted that Israel has killed an additional 10,037 Palestinians and injured 21,767 since March 2024, with more than 93 massacres, bringing reported totals to nearly 42,000 killed and 96,000 injured.^[247] Albanese emphasized that these figures likely significantly undercount actual deaths.

Key findings of the second report include:^[248]

- High-ranking Israeli officials, ministers, and religious leaders continue to encourage erasure and dispossession of Palestinians
- The Nakba has been deliberately accelerated
- There are patterns of conduct that evidence an intent to employ genocidal acts as a means to ethnically cleanse all or parts of the occupied Palestinian territory
- Israel has violated the ICJ's provisional measures
- Third states providing military and diplomatic support to Israel may be complicit in genocide

November 19, 2024 - Joint Statement:

On November 19, 2024, Albanese and 30 UN experts issued a joint statement saying their investigations "convincingly confirmed" genocide, citing the International Court of Justice rulings.^[249] The statement emphasized that continued international inaction and complicity by states providing arms to Israel violated the Genocide Convention's obligation to prevent genocide.

Attacks on Albanese:

Albanese has faced intense criticism and personal attacks for her work:^[250]

- Israeli officials have accused her of antisemitism and bias against Israel
- The United States Mission to the UN formally called for her dismissal in early 2025, accusing her of "virulent antisemitism," support for terrorism, misrepresenting her legal credentials, and unfairly targeting companies doing business with Israel
- In February 2024, 18 members of the U.S. Congress called for her removal, stating she had demonstrated consistent bias against Israel
- In March 2025, the far-right Jewish organization Betar threatened her with a pager attack during a visit to London, posting: "Join us to give Francesca a [pager emoji] in London" [\[251\]](#)
- U.S. Ambassador to the UN Linda Thomas-Greenfield stated: "Francesca Albanese is unfit for her role. The UN must not tolerate antisemitism from officials tasked with promoting human rights" [\[252\]](#)
- In July 2025, under the Trump administration, Secretary of State Marco Rubio imposed sanctions on Albanese [\[253\]](#)

Defenders of Albanese, including numerous human rights organizations and scholars of antisemitism, have argued that accusations against her are illegitimate attempts to discredit her work and silence criticism of Israel. Chris Hedges, a Pulitzer Prize-winning journalist, stated: "When the history of the genocide in Gaza is written, one of the most courageous and outspoken champions for justice and the adherence to international law will be Francesca Albanese." [\[254\]](#)

Albanese has consistently maintained that her work is based on international law and evidence, stating: "I stand firmly and convincingly on the side of justice, as I have always done. Pressure does not change my commitment or the results of my work." [\[255\]](#)

6.5 Human Rights Organizations

Major international human rights organizations have increasingly concluded that Israel is committing genocide or, at minimum, crimes against humanity and war crimes that may rise to the level of genocide.

Amnesty International - December 2024:

In December 2024, Amnesty International published a comprehensive report concluding that "Israel has carried out acts prohibited under the Genocide Convention, with the specific intent to destroy Palestinians in Gaza." [\[256\]](#) The report represents the culmination of months of research by Amnesty's Crisis Evidence Lab and field researchers, analyzing satellite imagery, video footage, testimonies, and documentary evidence.

Amnesty's report found: [\[257\]](#)

- Israel has committed at least three of the five prohibited acts under the Genocide Convention

- The acts were committed with specific intent to destroy Palestinians in Gaza as a group
- Israeli authorities have demonstrated clear intent through both statements and conduct
- The scale, nature, and manner of Israel's military assault demonstrate that destruction of Palestinians in Gaza is the aim of Israel's military operations

Agnes Callamard, Amnesty's Secretary General, stated:^[258]

"Month after month, Israel has treated Palestinians in Gaza as a subhuman group unworthy of human rights and dignity, demonstrating its intent to physically destroy them. Our damning findings must serve as a wake-up call to the international community."

Human Rights Watch - December 2024:

In December 2024, Human Rights Watch stated that Israeli authorities were responsible for the crime against humanity of extermination and for "acts of genocide."^[259] While HRW stopped short of definitively declaring that genocide has occurred, it found that acts meeting the legal definition of genocide have been committed.

HRW's report highlighted that Israel was "intentionally depriving Palestinian civilians in Gaza of adequate access to water," a finding that directly supports genocide allegations under Article II(c) of the Genocide Convention—deliberately inflicting conditions of life calculated to bring about physical destruction.^[260]

Other Organizations:

- **University Network for Human Rights (June 2024):** A collaborative report by Boston University School of Law, Cornell Law School, University of Pretoria, and Yale Law School concluded that "Israel's actions in and regarding Gaza since October 7, 2023, violate the Genocide Convention."^[261]
- **Lemkin Institute for Genocide Prevention:** Just days after the October 7 attacks, the Institute called for "Western leaders to pull back from the endorsement they have given Israel to effectively commit genocide against Palestinians."^[262]
- **B'Tselem and Physicians for Human Rights-Israel (July 2024):** Two prominent Israeli human rights organizations stated that their country is committing genocide in Gaza, a particularly significant development given their Israeli origin.^[263]
- **Middle East Studies Association (March 2024):** The MESA condemned the "accelerating scale of genocidal violence being inflicted on the Palestinian population of Gaza," saying that Israel's conduct constituted cultural genocide.^[264]

6.6 Surveys of Scholars and Public Opinion Shifts

Brookings Institution Surveys:

Surveys of 758 Middle East scholars by the Brookings Institution indicated a growing consensus that Israel's military campaign in Gaza constitutes genocide.^[265] The surveys

showed increasing agreement among regional experts as the conflict continued and more evidence emerged.

U.S. Public Opinion:

August 2025 polling shows that 47 percent of adults in the United States now recognize Israel's actions in Gaza as genocide, up from 39 percent in April 2024.^[266] This represents a significant shift in public opinion in less than a year and a half, reflecting both the scale of the humanitarian catastrophe and the impact of sustained activism and education campaigns.

The shift is particularly pronounced among younger Americans and Democrats, where majorities in some polls now characterize Israel's actions as genocide. This generational divide has significant implications for long-term U.S. policy toward Israel.

6.7 The Growing Consensus

In a report published in August 2025, the Arab Center Washington DC documented "The Growing Consensus over Israel's Genocide in Gaza," noting that "a growing consensus among experts and human rights organizations holds that genocide in Gaza is not a risk but a reality."^[267]

The report argued that despite growing recognition that Israel's current campaign meets the legal definition of genocide, there is also "an emerging agreement that the Palestinian people have in fact been suffering a protracted genocide for decades," referencing the broader historical context of settler colonialism and the Nakba.^[268]

Former Israeli officials have even begun to acknowledge potential war crimes. In December 2024, former Israeli Minister of Defense Moshe Yaalon admitted "war crimes are being committed," while former Prime Minister Ehud Olmert conceded in May 2025 that Israel was "committing war crimes."^[269]

VII. Conclusion: The Convergence of Law, Scholarship, and Public Conscience

The evidence documented in this comprehensive report demonstrates an unprecedented convergence of legal proceedings, scholarly assessment, humanitarian documentation, and public mobilization regarding the situation in Gaza. The weight of this converging evidence—from the highest international courts, the world's leading genocide experts, major human rights organizations, UN officials, and millions of protesters across the globe—creates a historical record that cannot be easily dismissed or ignored.

7.1 The Legal Record

The International Court of Justice has found plausible grounds for South Africa's genocide claims and issued three sets of legally binding provisional measures ordering Israel to prevent genocidal acts, ensure humanitarian assistance, and halt its Rafah offensive.^[270] While the Court has not yet issued a final judgment on the merits of the genocide allegations—a process that will take years—its willingness to indicate provisional measures signals that the claims are far from frivolous and that there is a serious risk to the protected group.

The International Criminal Court has taken the historic step of issuing arrest warrants for Israeli Prime Minister Benjamin Netanyahu and former Defense Minister Yoav Gallant for war crimes and crimes against humanity, specifically including the war crime of starvation as a method of warfare.^[271] This marks the first time the ICC has issued such warrants against leaders of a Western-allied democratic state, fundamentally challenging the notion that powerful states and their leaders are immune from international criminal justice.

7.2 The Humanitarian Reality

The humanitarian evidence is stark and irrefutable:

- More than 45,000 Palestinians killed, with experts warning the true toll including indirect deaths could exceed 186,000^[272]
- Nearly 70 percent of Gaza's infrastructure destroyed^[273]
- Approximately 85 percent of the population displaced, many repeatedly^[274]
- Five warnings from the IPC about imminent or ongoing famine conditions, with experts like Dr. Gregory Shay stating unequivocally: "You just look at these kids and you know that it's a famine"^[275]
- The healthcare system virtually destroyed, with only 12 of 32 hospitals partially operational^[276]
- 266 UNRWA staff members killed—the highest death toll for UN personnel in any conflict in history^[277]
- More than 217 journalists and 224 humanitarian workers killed^[278]
- Systematic obstruction of humanitarian aid, with 70 out of 204 aid missions denied access in January 2025 alone^[279]

The debate over whether famine has technically been reached—hampered by Israel's restrictions on data collection and movement—obscures the fundamental reality articulated by food security expert Alex de Waal: "We need to dethrone the concept that if it's not famine, it's OK. Even if it's not a famine, it can be truly terrible."^[280]

7.3 The Scholarly Consensus

The International Association of Genocide Scholars—the world's premier professional organization of genocide experts—concluded by an 86 percent vote that Israel's actions meet the legal definition of genocide.^[281] This determination came after careful analysis by

scholars who have dedicated their careers to understanding, defining, and identifying genocide. Their assessment cannot be dismissed as political bias or ignorance of the law.

UN Special Rapporteur Francesca Albanese, in two comprehensive reports totaling over 150 pages, concluded there are reasonable grounds to believe Israel is committing genocide, with the requisite specific intent demonstrated through both statements and conduct.^[282] Her analysis, grounded in international law and genocide jurisprudence, identifies the genocide in Gaza as "the most extreme stage of a long-standing settler colonial process of erasure."^[283]

Major human rights organizations including Amnesty International and Human Rights Watch have reached similar conclusions, with Amnesty stating definitively in December 2024 that Israel has committed acts of genocide with specific intent to destroy Palestinians in Gaza.^[284]

7.4 The Global Response

The global protest movement represents one of the largest sustained mobilizations in recent history. Millions have taken to the streets in cities across six continents, from London to Jakarta, from New York to Cape Town, from Madrid to Tokyo.^[285] More than 250,000 marched in London alone, while over one million Americans participated in protests in the first two months of the conflict.^[286]

University campuses became sites of sustained activism, with student encampments demanding divestment from companies supporting Israel's military operations. Congressional staffers staged walkouts, White House interns wrote letters of protest, and labor unions passed resolutions calling for ceasefire.^[287] The breadth and persistence of this movement indicate a fundamental shift in public consciousness, particularly among younger generations.

The movement has faced significant repression in some countries, with bans on protests in France and Germany, hundreds of arrests in the United States, and intense debates about antisemitism and free speech.^[288] Yet the protests have continued, demonstrating remarkable resilience and commitment.

7.5 Historical Parallels and Implications

The situation in Gaza invites comparison to other recognized genocides, while also presenting unique characteristics:

Similarities to Recognized Genocides:

- **Intent demonstrated through official statements:** As in Rwanda, where radio broadcasts incited genocide, Israeli officials' dehumanizing statements about Palestinians provide evidence of genocidal intent

- **Creation of conditions of life to destroy the group:** The siege and blockade parallel tactics used in the genocide of Yazidis and the Siege of Sarajevo during the Bosnian genocide
- **Systematic destruction of group infrastructure:** The targeting of hospitals, schools, and cultural sites echoes the cultural genocide aspects of other cases
- **Use of starvation:** Similar to the Holodomor in Ukraine and aspects of the Cambodian genocide

Unique Characteristics:

- **First settler-colonial genocide litigated before international court:** Unlike previous genocides committed by recognized states against minority populations, this involves a state with substantial international support and protection
- **Real-time documentation:** Modern technology allows for unprecedented documentation of potential genocide as it occurs, with satellite imagery, social media, and communications providing evidence in real time
- **Invocation of self-defense:** Israel's claim of acting in self-defense following the October 7 Hamas attacks creates a unique legal context not present in most genocide cases
- **Complicity of major powers:** The active military and diplomatic support of the United States and other Western powers for Israel during the commission of alleged genocide raises questions of state complicity not present in most modern genocides

7.6 The Question of Complicity

South African Minister of International Relations and Cooperation Naledi Pandor has stated that should the ICJ find there to have been genocide, states that aided and abetted it would be considered parties to the commission of the crime under the Genocide Convention.^[289] This raises profound questions about the responsibility of states providing military, financial, and diplomatic support to Israel during the commission of alleged genocidal acts.

The United States has provided billions of dollars in military aid to Israel since October 7, 2023, including bombs, missiles, and other weapons used in Gaza. Other countries, including the United Kingdom, Germany, and others, have also provided military or political support. If genocide is ultimately confirmed, these states may face legal and moral accountability for their role in enabling it.

Human rights organizations have launched domestic legal proceedings against officials in the U.S. and UK over aid to Israel, rooted in the same legal principles as the ICJ case.^[290] While these domestic cases face significant legal hurdles, they reflect growing efforts to hold complicit states accountable.

7.7 The Enforcement Challenge

The fundamental challenge facing international justice in the Gaza case is enforcement. Despite legally binding ICJ orders, Israel has largely continued its military operations with

minimal changes. The ICC arrest warrants have restricted Netanyahu's and Gallant's travel, but Israel remains defiant, and powerful allies like the United States actively oppose enforcement.

The UN Security Council, which could authorize enforcement measures, is paralyzed by the U.S. veto power. This structural limitation of the international legal system—that it relies on state cooperation and lacks effective enforcement mechanisms against powerful states—is thrown into sharp relief by the Gaza case.

Nevertheless, the legal proceedings and findings have significant implications:

- **Diplomatic isolation:** Israel faces growing diplomatic isolation as the gap widens between its conduct and international legal norms
- **Historical judgment:** Regardless of immediate enforcement, the record being created will shape historical understanding of these events
- **Precedent:** The willingness of international courts to issue orders and warrants against a Western-allied state strengthens the universality of international law
- **Moral pressure:** The legal findings provide legitimacy and authority to protest movements and civil society activism
- **Long-term accountability:** Even if immediate enforcement fails, the legal record may support future accountability efforts

7.8 The Path Forward

The question is no longer whether sufficient evidence exists to warrant serious investigation of genocide allegations. The International Court of Justice has found such evidence plausible. The International Criminal Court has issued arrest warrants. The world's leading genocide scholars have reached consensus. Major human rights organizations have concluded genocide is occurring. Millions have protested globally.

The question is whether the international legal system and the community of nations will act effectively on that evidence. Will states fulfill their obligations under the Genocide Convention to prevent and punish genocide? Will the arrest warrants be enforced? Will humanitarian aid be allowed to reach Gaza at the scale necessary to prevent further mass death? Will those responsible for crimes ultimately be held accountable?

The answers to these questions will determine not only the fate of Palestinians in Gaza but also the credibility and future of the international legal order itself. If the rules-based international system cannot respond effectively to a situation that so many experts characterize as genocide, occurring in real time with extensive documentation, the system's legitimacy and utility are called into fundamental question.

7.9 A Historical Inflection Point

The Gaza crisis represents a historical inflection point for international humanitarian law, human rights, and the international legal order. The convergence of legal proceedings,

expert assessments, humanitarian catastrophe, and global protest creates a moment of clarity about the gap between international legal norms and their enforcement, between universal human rights and their selective application, between the promise of "never again" and the reality of insufficient action.

As Francesca Albanese stated before the UN: "I implore Member States to abide by their obligations which start with imposing an arms embargo and sanctions on Israel, and so ensure that the future does not continue to repeat itself."^[291]

The genocide scholar Dirk Moses observed that this is "the first settler-colonial genocide to be ever litigated before [an international] court."^[292] Its resolution—or failure of resolution—will shape international law, humanitarian norms, and the very concept of accountability for decades to come.

The documentation presented in this report, drawn from authoritative sources including UN agencies, international courts, peer-reviewed research, major human rights organizations, and the world's leading genocide experts, provides a comprehensive record of both the crisis in Gaza and the global response demanding justice. Whether this record will lead to effective action to halt the violence, ensure accountability, provide justice for victims, and prevent future atrocities remains the central question facing the international community.

What is clear is that this moment will be remembered. The choices made by states, institutions, and individuals in response to the Gaza crisis will be judged by history. As Dr. Gregory Shay observed after treating dying children in Gaza: "You just look at these kids and you know that it's a famine."^[293] The world knows. The question is whether the world will act.

References and Sources

1. Armed Conflict Location & Event Data Project, "Global demonstrations in response to the Middle East crisis," November 18, 2024, <https://acleddata.com/2024/11/18/global-demonstrations-in-response-to-the-middle-east-crisis/> ↩
2. International Association of Genocide Scholars, "Resolution on the Situation in Gaza," August 31, 2025, <https://genocidescholars.org/> ↩
3. UN News, "Gaza death toll passes 45,000 as UN school suffers new deadly strike," December 16, 2024, <https://news.un.org/en/story/2024/12/1158206> ↩
4. UNFPA, "Palestine Situation Report #11 - November 2024," <https://www.un.org/unispal/document/unfpa-sitrep-01nov2024/> ↩
5. Reuters, "As Gaza suffers, hunger watchdog refrains from using the F word: famine," December 30, 2024 ↩
6. United Nations, "Convention on the Prevention and Punishment of the Crime of Genocide," December 9, 1948, <https://www.un.org/en/genocideprevention/genocide-convention.shtml> ↩

7. Prevent Genocide International, "The international legal definition of genocide," <http://www.preventgenocide.org/genocide/officialtext-printerfriendly.htm> ↩
8. Raphael Lemkin, *Axis Rule in Occupied Europe* (1944), Chapter IX ↩
9. UN General Assembly Resolution 96(I), "The Crime of Genocide," December 11, 1946 ↩
10. United Nations Treaty Collection, "Convention on the Prevention and Punishment of the Crime of Genocide - Status" ↩
11. International Criminal Court, "Rome Statute of the International Criminal Court," Article 6, <https://www.icc-cpi.int/resource-library/documents/rs-eng.pdf> ↩
12. UN Office on Genocide Prevention, "Definitions of Genocide and Related Crimes," <https://www.un.org/en/genocide-prevention/definition> ↩
13. *Ibid.* ↩
14. Convention on the Prevention and Punishment of the Crime of Genocide, Article II ↩
15. *Ibid.*, Article II(a) ↩
16. Wikipedia, "Genocide Convention," https://en.wikipedia.org/wiki/Genocide_Convention (accessed October 2025) ↩
17. Convention on the Prevention and Punishment of the Crime of Genocide, Article II(b) ↩
18. *Ibid.*, Article II(c) ↩
19. *Ibid.*, Article II(d) ↩
20. *Ibid.*, Article II(e) ↩
21. U.S. Holocaust Memorial Museum, "The Legal Framework," <https://www.ushmm.org/genocide-prevention/simon-skjodt-center/work/ferencz-international-justice-initiative/transitional-justice/the-legal-framework> ↩
22. Prevent Genocide International, "The international legal definition of genocide," <http://www.preventgenocide.org/genocide/officialtext-printerfriendly.htm> ↩
23. *Ibid.* ↩
24. Convention on the Prevention and Punishment of the Crime of Genocide, Article II ↩
25. UN, "About the Genocide Convention," <https://www.un.org/en/genocideprevention/documents/Genocide%20Convention-FactSheet-ENG.pdf> ↩
26. Prevent Genocide International, "The international legal definition of genocide" ↩
27. Convention on the Prevention and Punishment of the Crime of Genocide, Article III ↩
28. *Ibid.*, Article IV ↩
29. *Ibid.*, Article IX ↩
30. Rome Statute of the International Criminal Court, Article 6 ↩
31. U.S. Holocaust Memorial Museum, "The Legal Framework" ↩
32. International Court of Justice, "Application of the Convention on the Prevention and Punishment of the Crime of Genocide in the Gaza Strip (South Africa v. Israel)," Case 192, <https://www.icj-cij.org/case/192> ↩
33. Amnesty International, "Israel must comply with key ICJ ruling," January 29, 2024, <https://www.amnesty.org/en/latest/news/2024/01/israel-must-comply-with-key-icj-ruling-ordering-it-to-do-all-in-its-power-to-prevent-genocide-against-palestinians-in-gaza/> ↩
34. Wikipedia, "South Africa's genocide case against Israel," https://en.wikipedia.org/wiki/South_Africa's_genocide_case_against_Israel ↩
35. *Ibid.* ↩
36. *Ibid.* ↩

37. International Court of Justice, "Summary of the Order of 26 January 2024," <https://www.icj-cij.org/node/203454> ↩
38. *Ibid.* ↩
39. *Ibid.* ↩
40. *Ibid.* ↩
41. *Ibid.* ↩
42. ICJ, "Order of 26 January 2024," <https://www.icj-cij.org/node/203447> ↩
43. Chatham House, "South Africa's genocide case against Israel: The International Court of Justice explained," February 21, 2024, <https://www.chathamhouse.org/2024/01/south-africas-genocide-case-against-israel-international-court-justice-explained> ↩
44. Human Rights Watch, "Gaza: World Court Orders Israel to Prevent Genocide," January 26, 2024, <https://www.hrw.org/news/2024/01/26/gaza-world-court-orders-israel-prevent-genocide> ↩
45. Amnesty International, "Israel must comply with key ICJ ruling" ↩
46. *Ibid.* ↩
47. UN, "The International Court of Justice reaffirms its previous provisional measures and indicates new measures - Order of 28 March 2024," May 24, 2024, <https://www.un.org/unispal/document/icj-provisional-measures-24may24/> ↩
48. *Ibid.* ↩
49. Diakonia IHL Centre, "The ICJ's Second Order on Provisional Measures in the South Africa v. Israel Case," <https://www.diakonia.se/ihl/news/icj-second-order-on-provisional-measures-south-africa-v-israel/> ↩
50. Reuters, "An elaborate global system exists to prevent famine. It's failing," December 4, 2024, <https://www.reuters.com/investigates/special-report/famine-response-overview/> ↩
51. *Ibid.* ↩
52. Science, "Is Gaza's hunger crisis officially a famine? Not until the Integrated Food Security Phase Classification System says so," December 18, 2024, <https://www.science.org/content/article/gaza-hunger-crisis-officially-famine-not-until-integrated-food-security-phase> ↩
53. *Ibid.* ↩
54. Amnesty International, "Israel must comply with key ICJ ruling" ↩
55. UN Charter, Article 94 ↩
56. Atlantic Council, "Experts react: What the International Court of Justice said (and didn't say) in the genocide case against Israel," January 28, 2024, <https://www.atlanticcouncil.org/blogs/new-atlanticist/experts-react/experts-react-what-the-international-court-of-justice-said-and-didnt-say-in-the-genocide-case-against-israel/> ↩
57. International Criminal Court, "Situation in the State of Palestine," <https://www.icc-cpi.int/palestine> ↩
58. Wikipedia, "International Criminal Court arrest warrants for Israeli leaders," https://en.wikipedia.org/wiki/International_Criminal_Court_arrest_warrants_for_Israeli_leaders ↩
59. *Ibid.* ↩
60. *Ibid.* ↩
61. *Ibid.* ↩
62. International Criminal Court, "Situation in the State of Palestine: ICC Pre-Trial Chamber I rejects the State of Israel's challenges to jurisdiction and issues warrants of arrest for Benjamin Netanyahu and Yoav Gallant," November 21, 2024, <https://www.icc-cpi.int/news/situation-state-palestine-icc-pre-trial-chamber-i-rejects-state-israels-challenges> ↩
63. *Ibid.* ↩
64. UN, "International Criminal Court issues arrest warrants," November 22, 2024, <https://www.un.org/unispal/document/icc-arrest-warrant-netanyahu-21nov24/> ↩

65. *Ibid.* ↩
66. *Ibid.* ↩
67. Wikipedia, "International Criminal Court arrest warrants for Israeli leaders" ↩
68. *Ibid.* ↩
69. *Ibid.* ↩
70. *Ibid.* ↩
71. American University SIS, "What Do ICC Arrest Warrants Mean for Israel and the War in Gaza?," <https://www.american.edu/sis/news/20241125-what-do-icc-arrest-warrants-mean-for-israel-and-the-war-in-gaza.cfm> ↩
72. Al Jazeera, "World reacts to ICC arrest warrants for Israel's Netanyahu, Gallant," November 22, 2024, <https://www.aljazeera.com/news/2024/11/21/world-reacts-to-icc-arrest-warrants-for-israels-netanyahu-gallant> ↩
73. *Ibid.* ↩
74. ECCHR, "Q&A on the arrest warrants issued by the ICC against Netanyahu and Gallant," https://www.ecchr.eu/fileadmin/Q_As/ECCHR_QA_arrest_warrant_ICC_Netanjahu_Gallant_042025.pdf ↩
75. UN OCHA, "Occupied Palestinian Territory: Gaza Emergency Situation Report," <https://www.ochaopt.org/content/hostilities-gaza-strip-and-israel-reported-impact-day-379> ↩
76. *Ibid.* ↩
77. UN, "Casualties of the Israel-Gaza conflict," <https://www.un.org/unispal/data-collection/casualties/> ↩
78. UN News, "Gaza death toll passes 45,000" ↩
79. Wikipedia, "Casualties of the Israel-Gaza war," https://en.wikipedia.org/wiki/Casualties_of_the_Israel-Gaza_war ↩
80. *Ibid.* ↩
81. The Lancet, "Counting the dead in Gaza: difficult but essential," July 5, 2024, [https://www.thelancet.com/journals/lancet/article/PIIS0140-6736\(24\)01169-3/fulltext](https://www.thelancet.com/journals/lancet/article/PIIS0140-6736(24)01169-3/fulltext) ↩
82. Wikipedia, "Casualties of the Israel-Gaza war" ↩
83. The Lancet, "Counting the dead in Gaza" ↩
84. *Ibid.* ↩
85. *Ibid.* ↩
86. OHCHR, "Gaza: UN experts call on international community to prevent genocide," November 16, 2023, <https://www.ohchr.org/en/press-releases/2023/11/gaza-un-experts-call-international-community-prevent-genocide> ↩
87. OHCHR, "Six-month update report on the conflict in Gaza," <https://www.ohchr.org/sites/default/files/documents/countries/ps/2024-06-26/2024-06-26-otp-gaza-report.pdf> ↩
88. The Guardian, "WHO chief says Israeli attacks on Gaza's health system amount to 'death sentence,'" October 17, 2024, <https://www.theguardian.com/world/2024/oct/17/who-chief-says-israeli-attacks-on-gazas-health-system-amount-to-death-sentence> ↩
89. *Ibid.* ↩
90. UN, "Gaza: With famine looming, FAO urges immediate access for agricultural aid," December 20, 2024, <https://www.un.org/unispal/document/famine-looming-gaza-fao-20dec24/> ↩
91. *Ibid.* ↩
92. UNRWA, "Situation Report #147 on the situation in the Gaza Strip," <https://www.unrwa.org/resources/reports/unrwa-situation-report-147-situation-gaza-strip> ↩
93. UNRWA, "Situation Report #155 on the situation in the Gaza Strip and the West Bank," <https://www.unrwa.org/resources/reports/unrwa-situation-report-155-situation-gaza-strip-and-west>

[bank](#) ↩

94. *Ibid.* ↩
95. Reuters, "An elaborate global system exists to prevent famine" ↩
96. *Ibid.* ↩
97. *Ibid.* ↩
98. *Ibid.* ↩
99. *Ibid.* ↩
100. *Ibid.* ↩
101. *Ibid.* ↩
102. *Ibid.* ↩
103. *Ibid.* ↩
104. *Ibid.* ↩
105. Science, "Is Gaza's hunger crisis officially a famine?" ↩
106. *Ibid.* ↩
107. Reuters, "As Gaza suffers, hunger watchdog refrains from using the F word: famine" ↩
108. Science, "Is Gaza's hunger crisis officially a famine?" ↩
109. *Ibid.* ↩
110. *Ibid.* ↩
111. Reuters, "An elaborate global system exists to prevent famine" ↩
112. Science, "Is Gaza's hunger crisis officially a famine?" ↩
113. *Ibid.* ↩
114. *Ibid.* ↩
115. Reuters, "As Gaza suffers, hunger watchdog refrains from using the F word: famine" ↩
116. Science, "Is Gaza's hunger crisis officially a famine?" ↩
117. Reuters, "As Gaza suffers, hunger watchdog refrains from using the F word: famine" ↩
118. Science, "Is Gaza's hunger crisis officially a famine?" ↩
119. Reuters, "An elaborate global system exists to prevent famine" ↩
120. Reuters, "As Gaza suffers, hunger watchdog refrains from using the F word: famine" ↩
121. *Ibid.* ↩
122. *Ibid.* ↩
123. Science, "Is Gaza's hunger crisis officially a famine?" ↩
124. *Ibid.* ↩
125. Reuters, "As Gaza suffers, hunger watchdog refrains from using the F word: famine" ↩
126. Science, "Is Gaza's hunger crisis officially a famine?" ↩
127. *Ibid.* ↩
128. *Ibid.* ↩
129. *Ibid.* ↩
130. Reuters, "As Gaza suffers, hunger watchdog refrains from using the F word: famine" ↩
131. *Ibid.* ↩
132. *Ibid.* ↩
133. *Ibid.* ↩
134. *Ibid.* ↩
135. *Ibid.* ↩
136. *Ibid.* ↩
137. *Ibid.* ↩

138. *Ibid.* ↩
139. *Ibid.* ↩
140. *Ibid.* ↩
141. *Ibid.* ↩
142. *Ibid.* ↩
143. Science, "Is Gaza's hunger crisis officially a famine?" ↩
144. UNFPA, "Palestine Situation Report #11" ↩
145. *Ibid.* ↩
146. *Ibid.* ↩
147. *Ibid.* ↩
148. *Ibid.* ↩
149. *Ibid.* ↩
150. *Ibid.* ↩
151. *Ibid.* ↩
152. *Ibid.* ↩
153. *Ibid.* ↩
154. *Ibid.* ↩
155. *Ibid.* ↩
156. UNFPA, "Palestine Situation Report #11" ↩
157. *Ibid.* ↩
158. Science, "Is Gaza's hunger crisis officially a famine?" ↩
159. UN, "Gaza: With famine looming, FAO urges immediate access" ↩
160. *Ibid.* ↩
161. UNRWA, "Situation Report #147" ↩
162. UNRWA, "Situation Report #155" ↩
163. *Ibid.* ↩
164. *Ibid.* ↩
165. UNFPA, "Palestine Situation Report #11" ↩
166. Reuters, "As Gaza suffers, hunger watchdog refrains from using the F word: famine" ↩
167. *Ibid.* ↩
168. *Ibid.* ↩
169. *Ibid.* ↩
170. *Ibid.* ↩
171. *Ibid.* ↩
172. *Ibid.* ↩
173. ICJ, "Application of the Convention on the Prevention and Punishment of the Crime of Genocide in the Gaza Strip (South Africa v. Israel)" ↩
174. ACLED, "Global demonstrations in response to the Middle East crisis" ↩
175. *Ibid.* ↩
176. Wikipedia, "Gaza war protests in the United States,"
https://en.wikipedia.org/wiki/Gaza_war_protests_in_the_United_States ↩
177. ACLED, "Global demonstrations in response to the Middle East crisis" ↩
178. Al Jazeera, "Thousands take part in pro-Palestine protests across the world," February 17, 2024,
<https://www.aljazeera.com/news/2024/2/17/thousands-take-part-in-pro-palestine-protests-across-the-world> ↩

179. *Ibid.* ↩
180. *Ibid.* ↩
181. *Ibid.* ↩
182. Wikipedia, "Gaza war protests" ↩
183. Al Jazeera, "Protests around the world commemorate one year of Israel's war on Gaza," October 7, 2024, <https://www.aljazeera.com/gallery/2024/10/7/protests-around-the-world-commemorate-one-year-of-israels-war-on-gaza> ↩
184. Al Jazeera, "Photos: Thousands march worldwide for Gaza and Lebanon," October 6, 2024, <https://www.aljazeera.com/gallery/2024/10/6/thousands-march-across-the-world-for-gaza-and-lebanon> ↩
185. France 24, "'Ceasefire now!': Protesters across the world demand end to war in Gaza, Lebanon," October 5, 2024, <https://www.france24.com/en/live-news/20241005-thousands-march-for-palestinians-ahead-of-oct-7-anniversary> ↩
186. Al Jazeera, "Protests around the world commemorate one year" ↩
187. *Ibid.* ↩
188. *Ibid.* ↩
189. *Ibid.* ↩
190. Wikipedia, "Gaza war protests" ↩
191. *Ibid.* ↩
192. Al Jazeera, "Protests around the world commemorate one year" ↩
193. Wikipedia, "Gaza war protests" ↩
194. Al Jazeera, "Photos: Thousands march worldwide" ↩
195. Wikipedia, "Gaza war protests" ↩
196. Al Jazeera, "Photos: Thousands march worldwide" ↩
197. Wikipedia, "Gaza war protests in the United States" ↩
198. Al Jazeera, "Photos: Thousands march worldwide" ↩
199. *Ibid.* ↩
200. *Ibid.* ↩
201. France 24, "Ceasefire now!" ↩
202. *Ibid.* ↩
203. Wikipedia, "Gaza war protests" ↩
204. Al Jazeera, "Protests around the world commemorate one year" ↩
205. ACLED, "Global demonstrations in response to the Middle East crisis" ↩
206. Wikipedia, "Gaza war protests in the United States" ↩
207. *Ibid.* ↩
208. *Ibid.* ↩
209. *Ibid.* ↩
210. *Ibid.* ↩
211. *Ibid.* ↩
212. *Ibid.* ↩
213. *Ibid.* ↩
214. Wikipedia, "Gaza war protests" ↩
215. *Ibid.* ↩
216. Wikipedia, "Gaza war protests in the United States" ↩
217. *Ibid.* ↩

218. PBS News, "Leading genocide scholars organization says Israel is committing genocide in Gaza," September 1, 2025, <https://www.pbs.org/newshour/world/leading-genocide-scholars-organization-says-israel-is-committing-genocide-in-gaza> ↩
219. The Times of Israel, "Genocide scholars say IDF committing genocide in Gaza," September 1, 2025, <https://www.timesofisrael.com/genocide-scholars-say-idf-committing-genocide-in-gaza-israel-based-on-hamas-lies/> ↩
220. PBS News, "Leading genocide scholars organization says Israel is committing genocide" ↩
221. *Ibid.* ↩
222. *Ibid.* ↩
223. *Ibid.* ↩
224. The Times of Israel, "Genocide scholars say IDF committing genocide" ↩
225. PBS News, "Leading genocide scholars organization says Israel is committing genocide" ↩
226. Euro-Med Monitor, "Scholars' consensus: Genocide in Gaza marks turning point," <https://euromedmonitor.org/en/article/5914/Scholars%E2%80%99-consensus:-Genocide-in-Gaza-marks-turning-point,-Israel-must-be-held-accountable> ↩
227. *Ibid.* ↩
228. Wikipedia, "Gaza genocide," https://en.wikipedia.org/wiki/Gaza_genocide ↩
229. Wikipedia, "International Criminal Court arrest warrants for Israeli leaders" ↩
230. Contending Modernities, "Statement of Scholars in Holocaust and Genocide Studies on Mass Violence in Israel and Palestine since 7 October," January 27, 2024, <https://contendingmodernities.nd.edu/global-currents/statement-of-scholars-7-october/> ↩
231. *Ibid.* ↩
232. *Ibid.* ↩
233. Al Jazeera, "Gaza and the dilemmas of genocide scholars," February 3, 2024, <https://www.aljazeera.com/opinions/2024/2/3/gaza-and-the-dilemmas-of-genocide-scholars> ↩
234. *Ibid.* ↩
235. *Ibid.* ↩
236. Taylor & Francis Online, "The Growing Rift between Holocaust Scholars over Israel/Palestine," <https://www.tandfonline.com/doi/full/10.1080/14623528.2024.2448061> ↩
237. *Ibid.* ↩
238. *Ibid.* ↩
239. Wikipedia, "Francesca Albanese," https://en.wikipedia.org/wiki/Francesca_Albanese ↩
240. UN News, "Rights expert finds 'reasonable grounds' genocide is being committed in Gaza," March 28, 2024, <https://news.un.org/en/story/2024/03/1147976> ↩
241. *Ibid.* ↩
242. *Ibid.* ↩
243. OHCHR, "States must adhere to obligations under Genocide Convention," March 26, 2024, <https://www.ohchr.org/en/press-releases/2024/03/states-must-adhere-obligations-under-genocide-convention-prevent-further> ↩
244. *Ibid.* ↩
245. UN, "Genocide as colonial erasure - Report of Francesca Albanese," October 1, 2024, <https://www.un.org/unispal/document/genocide-as-colonial-erasure-report-francesca-albanese-01oct24/> ↩
246. *Ibid.* ↩
247. *Ibid.* ↩
248. *Ibid.* ↩

249. Newsweek, "Who is Francesca Albanese?—UN Official Reviled by the US," July 10, 2025, <https://www.newsweek.com/francesca-albanese-sanctions-gaza-marco-rubio-2097046> ↵
250. Wikipedia, "Francesca Albanese" ↵
251. *Ibid.* ↵
252. Newsweek, "Who is Francesca Albanese?" ↵
253. *Ibid.* ↵
254. *Ibid.* ↵
255. *Ibid.* ↵
256. Arab Center DC, "The Growing Consensus over Israel's Genocide in Gaza," August 19, 2025, <https://arabcenterdc.org/resource/the-growing-consensus-over-israels-genocide-in-gaza/> ↵
257. *Ibid.* ↵
258. *Ibid.* ↵
259. *Ibid.* ↵
260. *Ibid.* ↵
261. *Ibid.* ↵
262. *Ibid.* ↵
263. *Ibid.* ↵
264. Wikipedia, "Gaza genocide" ↵
265. *Ibid.* ↵
266. Arab Center DC, "The Growing Consensus over Israel's Genocide in Gaza" ↵
267. *Ibid.* ↵
268. *Ibid.* ↵
269. *Ibid.* ↵
270. ICJ, Orders of January 26, March 28, and May 24, 2024 ↵
271. ICC, "Situation in the State of Palestine: ICC Pre-Trial Chamber I rejects Israel's challenges" ↵
272. The Lancet, "Counting the dead in Gaza" ↵
273. UNFPA, "Palestine Situation Report #11" ↵
274. *Ibid.* ↵
275. Reuters, "As Gaza suffers, hunger watchdog refrains from using the F word: famine" ↵
276. OHCHR, "Six-month update report" ↵
277. UNRWA, "Situation Report #155" ↵
278. Wikipedia, "Casualties of the Gaza war" ↵
279. UNRWA, "Situation Report #155" ↵
280. Reuters, "As Gaza suffers, hunger watchdog refrains from using the F word: famine" ↵
281. PBS News, "Leading genocide scholars organization says Israel is committing genocide" ↵
282. UN News, "Rights expert finds 'reasonable grounds' genocide is being committed"; UN, "Genocide as colonial erasure" ↵
283. OHCHR, "States must adhere to obligations under Genocide Convention" ↵
284. Arab Center DC, "The Growing Consensus over Israel's Genocide in Gaza" ↵
285. ACLED, "Global demonstrations in response to the Middle East crisis" ↵
286. Al Jazeera, "Thousands take part in pro-Palestine protests"; Wikipedia, "Gaza war protests in the United States" ↵
287. Wikipedia, "Gaza war protests in the United States" ↵
288. Wikipedia, "Gaza war protests" ↵
289. Atlantic Council, "Experts react: What the ICJ said" ↵

290. *Ibid.* ↩

291. UN News, "Rights expert finds 'reasonable grounds' genocide is being committed" ↩

292. Wikipedia, "Gaza genocide" ↩

293. Reuters, "As Gaza suffers, hunger watchdog refrains from using the F word: famine" ↩